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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

SEPTEMBER 30, 2025

>> MAYOR A. ISHII: OKAY. HI. ARE WE -- HOW ARE WE DOING OVER HERE, CLERKS? ARE WE READY?

>> RECORDING IN PROGRESS.

>> MAYOR A. ISHII: OKAY. VERY GOOD. ALL RIGHT. I AM GOING TO CALL THE BERKELEY CITY COUNCIL MEETING TO ORDER. TODAY IS SEPTEMBER 30, 2025. CLERK, COULD YOU PLEASE TAKE THE ROLL?

>> CITY CLERK: CERTAINLY. ALL RIGHT. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: HERE.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: HERE.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: HERE.

>> CITY CLERK: TREGUB.

>> I. TREGUB: PRESENT.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: PRESENT.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: HERE. ALL RIGHT. WE HAVE A FEW CEREMONIAL ITEMS BEGINNING WITH INDIGENOUS PEOPLES DAY. I'M GOING TO READ

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THIS. FOLKS, IF YOU WANT TO COME -- IF YOU ARE UP HERE FOR INDIGENOUS PEOPLES DAY, YOU ARE WELCOME TO COME UP TO THE PODIUM. ALL RIGHT. CELEBRATING INDIGENOUS PEOPLES DAY IN BERKELEY. WHERE IS THE YEAR 2025 MARCH 30 THIRD ANNIVERSARY CELEBRATION OF INDIGENOUS PEOPLES DAY IN THE CITY OF BERKELEY AND IN COMMEMORATION OF 533 YEARS OF RESISTANCE AND RENEWAL OF NATIVE CULTURES IN THE FACE OF POLITICAL AND CULTURAL REPRESSION. AND WHERE IS THE INDIGENOUS PEOPLES DAY COMMITTEE GROUP OF LOCAL -- ORGANIZED THE ANNUAL CELEBRATION WITH AN INDIGENOUS PEOPLE STAY POWWOW AND INDIAN MARKET IN MARTIN LUTHER KING CIVIC CENTER PARK ON SATURDAY, OCTOBER 11. AND WHEREAS THE INDIGENOUS CULTURE FLOURISHING IN OHLONE TERRITORY SINCE TIME IMMEMORIAL WAS A SUSTAINABLE PEACEFUL CULTURE BASED ON COOPERATION OF NEIGHBORS BASED ON RESPECT FOR THE LAND AND ALL CREATURES LIVING IN IT. AND THIS INDIGENOUS CULTURE WAS DISRUPTED AND DESTROYED IN OHLONE TERRITORY, BERKELEY, AS IN ALMOST ALL PARTS OF THIS HEMISPHERE. AND YET, IT HAS SURVIVED. WHERE IS THE INDIGENOUS PEOPLE POWWOW, AND INDIAN MARKET HAS BROUGHT UNDERSTANDING REGARDING THE AMAZING COUNTRY VISIONS NATIVE PEOPLE HAVE MADE AND CONTINUE TO MAKE THE WORLD CULTURE. NOW THEREFORE IT BE RESOLVED THAT I, ADENA ISHII, THEY ARE OF THE CITY OF BERKELEY, DO HEREBY AFFIRM THAT MONDAY, OCTOBER 13, 2025, SHALL BE TOLERATED AS INDIGENOUS PEOPLES DAY AND ENCOURAGE

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TO ATTEND ON SATURDAY, OCTOBER 11 FROM 10:00 A.M. TO 6:00 P.M. IN MARTIN LUTHER KING CENTER PARK. THANKS. [APPLAUSE]

>> GOOD EVENING. I'M VERY HONORED TO BE HERE ON BEHALF OF INDIGENOUS PEOPLES DAY COMMITTEE. WE WILL BE HOSTING OUR 133RD ANNUAL POWWOW. AND WE REALLY APPRECIATE THE ACKNOWLEDGMENT FOR INDIGENOUS PEOPLE AND THE ORIGINAL PEOPLE OF THIS LAND. THANK YOU. [APPLAUSE]

>> MAY I ALSO ADD THAT IT IS A COMING TOGETHER OF THE PEOPLE OF THE EAGLE AND THE PEOPLE OF THE CONDOR OF NORTH AND SOUTH AMERICA, WHICH WAS THE INSPIRATION FOR THE CREATION OF THIS POWWOW. SO WE HONOR THE TRIBES FROM NORTH AND SOUTH AMERICA. THANK YOU.

>> SYDNEY?

>> DO YOU GUYS WANT TO LINE UP AGAINST THE WALL? PERFECT. ALL RIGHT. THANK YOU.

>> SEE YOU LATER. THANK YOU.

>> MAYOR A. ISHII: OKAY. AND WE ALSO HAVE A PROBLEM NATION AND ADJOURNMENT IN MEMORY FOR DAN SIEGEL WHICH WAS REQUESTED BY COUNCILMEMBERS LUNAPARRA AND TREGUB. I WILL ALLOW COUNCILMAN LUNAPARRA TO READ THE PROCURATION.

>> C. LUNAPARRA: THANK YOU SO MUCH. HONORING THE LIFE AND LEGACY OF DAN SIEGEL. WHERE IS DAN SIEGEL, A CIVIL RIGHTS LAWYER WHO FOUGHT FOR UNIONS AND HUMAN RIGHTS ADVOCATES OVER FIVE

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DECADES OF CIVIL PRACTICE DIED ON JULY 2, AND WHEREAS BORN IN THE BRONX, DAN SIEGEL'S LIFE WAS SHAPED BY HIS UPBRINGING IN THE LONG ISLAND -- AND HIS FAMILY INCLUDING TWO SONS AND THREE GRANDCHILDREN. AND WHEREAS AFTER GRADUATING FROM HAMILTON COLLEGE IN 1967 WITH A DEGREE IN RELIGIOUS STUDIES, HE MOVED TO BERKELEY TO ATTEND LAW SCHOOL. HE ASPIRE TO BECOME AN ATTORNEY AFTER BEING ARRESTED -- TO REGISTER VOTERS. HE ALWAYS REMOVED THAT IT WAS A NATIONAL GUILD ATTORNEY WHO GOT HIM OUT OF JAIL. AND WHEREAS DAN AND ANN IN BERKELEY BOTH PLAYED KEY ROLES TO SUPPORT THE CIVIL RIGHTS MOVEMENT AND OPPOSED IMPERIALISM AND FASCISM. IN 19 629, DAN WAS ELECTED AS A STUDENT BODY PRESIDENT -- AND WHEREAS AFTER COMMITTEE MEMBERS BEAUTIFIED A DERELICT LOT IN CAMPUS TO PEOPLE'S PARK YOU SEE FENCED OFF THE SITE ON WHAT WOULD BECOME TO BE KNOWN AS BLOODIED THURSDAY, DAN URGED THOUSANDS GATHERED IN PROTEST TO GO DOWN THERE AND TAKE THE PARK. AS THE CROWD SPONTANEOUSLY HEADED DOWN -- AVENUE SERIOUSLY INJURING OTHERS AND KILLING A BYSTANDER. THAT NIGHT, REAGAN’S, AND NATIONAL GUARD TROOPS TO ENFORCE A CURFEW AND BAN ON PUBLIC ASSEMBLY. AND WHEREAS THE STATE BAR ASSOCIATION WOULD ULTIMATELY USE THESE EVENTS AS A BASIS FOR DENYING HIM THE RIGHT TO PRACTICE LAW. IT WOULD TAKE HISTORIC CALIFORNIA SUPREME COURT RULING TO AFFIRM THE DISSIPATION IN PROTEST MOVEMENT IS NOT A SIGN OF INSUFFICIENT CHARACTER. DAN WENT ON -- SEEKING

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PROTECTION FOR THOSE CIVIL LABOR AND FIRST A MINUTE RIGHTS. AND WHEREAS DAN REPP RESENTED WORKERS WHO BUILT PIPELINES IN ALASKA, CANNED FOOD IN WATSONVILLE, AND REPAIRED NAVAL SHIPS IN SAN DIEGO. HE RIVERS AND OCCUPY THE FARM PROTESTERS WHO CAMPED ON STATE LAND DURING THE OCCUPY MOVEMENT AND HE REPRESENTED PRO-PALESTINE ACTIVIST WHO STOPPED THE BAY BRIDGE TRAFFIC TO RAISE AWARENESS FOR GAZA. ENLISTED MILITARY PERSONNEL OR LOW INCOME WORKERS. AND WHEREAS AS CHIEF OF COMPLEX LITIGATION FOR THE SAME BITS AS THE CITY ATTORNEY, DAN LED THE SETTLEMENT OF AN EMPLOYMENT DISCRIMINATION CASE AGAINST THE CITY ASPIRE TO VARMINT RESULTING IN A CONSENT DECREE THAT GUARANTEED AFFIRMATIVE ACTION IN HIRING AND PROMOTIONS FOR WOMEN AND PEOPLE OF COLOR. DAN AND ANN TOGETHER RIVERS AND A NUMEROUS UNIVERSITY PROFESSORS -- IN 2007, DAN ONE THE TWO LARGEST VERDICTS UNDER TITLE IX OF THE CIVIL RIGHTS ACT, WHICH PROHIBITS SEX DISCRIMINATION AND WHEREAS DAN WAS ELECTED TO TWO TERMS AS CHAIR OF THE -- CO WROTE OAKLAND'S POLICING LAW, AND TAUGHT -- HONORED BY THE SAN FRANCISCO CHAPTER OF THE NATIONAL LAWYERS GUILD AS CHAMPIONS OF JUSTICE, INCITED AS A BIG MOVEMENT WHY SOCIAL MOVEMENTS ARE A BIG REASON WHY SOCIAL MOVEMENTS ARE SO STRONG IN THE BAY AREA. AND WHEREAS DAN'S FINAL APPEARANCE WAS A SPEECH AT THE OAKLAND NO KINGS RALLY ON JUNE 14, 2025, WHEN HE EXHORTED THE CROWD TO OPPOSE DONALD TRUMP AND THE WHITES OF PHARMACY

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MOVEMENT IN HIS PRESIDENCY. AND WHEREAS DAN AND ANN WERE MARRIED IN OAKLAND IN 1975. RECORDS OBTAINED PURSUANT TO THE FEDERAL INFORMATION ACT -- REPORTED ON THEIR UNION. THEY RAISED THEIR SON, MICHAEL SIEGEL, AND WHEREAS DAN IS SURVIVED BY ANN, MICHAEL, STEPSON, GRANDCHILDREN, BROTHERS, AND MANY LOVING FAMILY, FRIENDS, FAMILY MEMBERS AND FRIENDS. NOW THEREFORE IT BE RESOLVED THAT I, ADENA ISHII, MAYOR OF THE CITY OF BERKELEY, DO HEREBY HONOR -- EXPRESS OUR SINCERE GRATITUDE, INITIATION, AND CONDOLENCES ON BEHALF OF THE COUNTLESS PEOPLE BOTH WITHIN THE CITY OF PEOPLE AND BEYOND WHO LIVE IN A BETTER, MORE JUST WORLD AS A RESULT OF HIS ORGANIZING.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. I THINK IS HIS FAMILY HERE? OR PERHAPS ONLINE? OH, SOMEONE ONLINE. DID YOU WANT TO SAY A FEW WORDS?

>> CITY CLERK: THERE IS A HAND RAISED. WE CAN ASK IF IT IS REGARDING THE CEREMONIAL ITEM. CALLER WITH THE NUMBER ENDING IN 000, ARE YOU CALLING TO SPEAK ON THE CEREMONIAL ITEM? CALLER WITH THE NUMBER ENDING 000, PLEASE UNMUTE YOURSELF IF YOU'D LIKE TO SPEAK TO THE CEREMONIAL ITEM.

>> ROSE, THEY HAVE TO PRESENT NUMBERS FOR THAT, RIGHT?

>> CITY CLERK: I BELIEVE IT'S *SIX.

>> *SIX.

>> HI. BEAUTIFUL AMERICAN AND WHAT WAS --

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>> CITY CLERK: I'M SORRY, WE WERE LOOKING FOR DAN SIEGEL'S FAMILY, BUT PERHAPS THEY ARE NOT ONLINE RIGHT NOW.

>> CITY CLERK: I DON'T SEE ANY OTHER HANDS RAISED.

>> MAYOR A. ISHII: THEN I WILL JUST SAY THANK YOU FOR READING THAT AND WE WILL BE ADJOURNING IN HIS HONOR. AN ADDITIONAL ADJOURNMENT IN MEMORY IS FOR DINH LE, AND THAT WAS REQUESTED BY OUR COUNCILMEMBER FROM DISTRICT 8, COUNCILMEMBER HUMBERT. HE HAS REQUESTED THAT THE ADJOURNMENT IN MEMORY BE A VIDEO IN LIEU OF A SPEAKER. I THINK THE CITY CLERK IS -- YEAH.

>> C. LUNAPARRA: I HAVE A COUPLE OF COMMENTS AHEAD OF THE VIDEO TO MAKE. I WONDER IF ANY OF THE MEMBERS OF MR. DINH LE'S FAMILY ARE PRESENT HERE IN THE CHAMBERS? NAN LE, HIS SON? PLEASE COME UP. PLEASE COME UP. WE ARE GOING TO ENDEAVOR TO PLAY YOUR LOVELY SHORT VIDEO, MR. LE. TONIGHT, THE BERKELEY CITY COUNCIL WILL BE ADJOURNING IN MEMORY OF DINH LE, A BELOVED FATHER AND A REMARKABLE MAN AND MEMBER OF OUR COMMUNITY. I WANT TO THANK MR. LE'S FAMILY, AND ESPECIALLY HIS SON, NAN. AM I PRONOUNCING THAT CORRECTLY? THANK YOU. AND PROVIDING A BEAUTIFUL VIDEO TRIBUTE WILL SHARE WITH YOU ALL SHORTLY. I WATCHED IT EARLIER ONCE AND FOUND IT DEEPLY MOVING. FOR THOSE IN OUR COMMUNITY AND IN GOVERNMENT WHO SAY WE CAN'T PROTECT THE SAFETY OF PEOPLE WALKING AND BIKING FOR THIS OR THAT REASON, I IMPLORE YOU TO LISTEN TO THE STORIES OF PEOPLE LIKE MR. LE AND TRULY SIT WITH THE

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UNBEARABLE LOSSES THAT ARE BORN IN OUR COMMUNITY DAY IN AND DAY OUT FOR NEEDLESS TRAFFIC VIOLENCE. WE MUST RECOMMIT TO OUR VISION ZERO PRINCIPLES SO THAT ONE DAY OUR STREETS ARE NO LONGER LACES WHERE OUR COMMUNITY LOSES INCREDIBLE PEOPLE LIKE MR. LE. TO THE LE FAMILY, I'M SO SORRY FOR YOUR INCALCULABLE LOSS. MAY HIS LOVING AND ADVENTUROUS SPEAR IT BE AN INSPIRATION TO ALL OF US. THANK YOU. AND LET'S SEE IF WE CAN GET THIS PLAYED. [VIDEO PLAYING]

>> DINH LE WAS MORE THAN MY DAD. HE WAS MY COMPANION, MY TEACHER, MY TRAVEL PARTNER, MY JOY, AND MY ANGER. HE LIVED LIFE WITH SUCH QUIET STRENGTH, SUCH VIBRANCE, AND WITH SUCH LOVE THAT IT'S HARD TO IMAGINE THIS WORLD WITHOUT HIM. IN THE RECENT YEARS, MY DAD STARTED LIVING IN BERKELEY SO I COULD WATCH OVER HIM. BUT IT FELT LIKE HE WAS ACTUALLY THERE TO KEEP ME COMPANY AND NOT BE ALONE. MY DAD HAD A SPEAR IT LIKE NO OTHER. IT WAS BIGGER THAN LIFE. HE WAS GREGARIOUS, VIBRANT, ALWAYS A GREAT ENERGY IN THE ROOM. BUT BEHIND HIS JOY IS A STORY OF SUFFERING, SACRIFICE, AND RESILIENCE. MY FATHER FLED AND WENT INTO HIDING IN THE MOST SOUTHERN TIP OF VIETNAM DURING THE WAR IN 1979. HE WAS FINALLY ABLE TO LEAVE IN 1981 AND START A NEW LIFE. HE CAME TO AMERICA ALONE WITH NOTHING. NO ENGLISH, NO MONEY, BUT WITH HOPE TO BUILD A NEW LIFE. IS QUIET DETERMINATION BUILT THE FOUNDATION OF OUR LIVES. THROUGH IT ALL, HE NEVER LET US FORGET

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WHAT TRULY MATTERED. FAMILY AND HIS FAITH. HE DIED AS ONE OF THE RICHEST MEN I'VE EVER KNOWN. NOT BECAUSE OF WHAT HE OWNED, BUT BECAUSE OF HOW LITTLE HE NEEDED TO BE HAPPY IN LIFE. DAD, I PROMISE YOU THIS. WE WILL CARRY YOUR LEGACY IN THE WAY WE LOVE EACH OTHER AND IN THE WAY WE LIVE WITH COURAGE, HUMILITY, AND FAITH. YOU ARE NOT GONE. YOU ARE WITH US IN EVERY STEP, EVERY SMILE, EVERY PRAYER. WE LOVE YOU, DAD. WE ALWAYS WILL. [BANGING]

>> THANK YOU.

>> I'M SO SORRY. [BANGING] [DOOR CLOSING]

>> MAYOR A. ISHII: THE CEREMONIAL ITEMS ARE BOTH AN IMPORTANT PART AND ALSO SOMETIMES JUST A REALLY HEARTBREAKING PART OF OUR JOBS. SO THANK YOU ALL FOR BRINGING THESE ITEMS FORWARD TO US. WE HAVE CITY MANAGER COMMENTS NEXT. [BANGING]

>> CITY MANAGER: THANK YOU, MADAM MAYOR. I JUST HAVE ONE ITEM BEFORE YOU, WHICH IS THE ACCEPTANCE OF THE PROP 47 COHORT FIVE GRANT AND EXECUTION OF THE VOIDED AGREEMENT. I JUST WANTED TO SAY QUICKLY THAT THIS IS, OF ALL THE ITEMS ON THE AGENDA, THIS IS THE ONE I'M MOST PROUD OF TONIGHT AND THE REASON WHY IS BECAUSE WHAT THIS ITEM DOES IS RECEIVE $8 BILLION FROM THE STATE IN AN ATTEMPT TO HELP PEOPLE WHO HAVE MENTAL HEALTH ISSUES AND GET ARRESTED INSTEAD OF GOING TO JAIL GO TO A HOTEL AND GET TREATMENT. IT'S A PROGRAM FOCUSED ON PEOPLE WHO ARE HERE IN BERKELEY. THIS IS STEP ONE OF A TWO STEP PROCESS. THE STATE

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REGIMENTED THAT WE ACCEPT THESE GRANT FUNDS AS QUICKLY AS POSSIBLE, WHICH IS WHY THIS IS BEFORE YOU TONIGHT ON THE CONSENT CALENDAR. AND THEN AFTER ACCEPTING THESE FUNDS, WE WOULD BRING BACK A CONTRACTING AGREEMENT WITH THE OPERATORS OF BOTH THE HOTEL AND OPERATOR. I JUST WANTED TO HIGHLIGHT THIS ITEM ON THE AGENDA AND LET YOU KNOW WE THINK IT'S A TERRIFIC -- TO HELP PEOPLE WITH MENTAL HEALTH AND SUBSTANCE USE ISSUES AVOID JAIL AND ACTUALLY GET TREATMENT AND HOUSING. THAT'S ALL. [BANGING]

>> MAYOR A. ISHII: THANK YOU VERY MUCH. NOW I WANT TO GIVE SOME TIME OUR CITY ON ORDER WHO HAVE SOME COMMENTS AS WELL.

>> CITY AUDITOR: THANK YOU. THAT WAS QUITE AN EMOTIONAL ADJOURNMENT. SO I WANTED TO GIVE AN UPDATE ON ITEM NUMBER 21. THIS IS ON THE POLICE OVERTIME AUDIT RECOMMENDATIONS UPDATE. THE AUDIT WAS COMPLETED IN 2022 AS A REFRESHER. THE MAIN FINDING WAS THAT THE BERKELEY POLICE DEPARTMENT, OR. B.P.D., RELIED ON -- AND THEIR WORK FOR OUTSIDE ENTITIES HAD TRIPLED DURING 2020. B.P.D. HAS IMPLEMENTED RECOMMENDATIONS INCLUDING INCREASING TRANSPARENCY AROUND THEIR OUTSIDE ENTITIES WORK INCLUDING DEVELOPMENT PROCEDURES AND MAKING THIS PROGRAM ACCESSIBLE ON THEIR WEBSITE. ADDITIONALLY, SINCE THE LAST UPDATE LAST YEAR, THE DEPARTMENT HAS IMPLEMENTED TWO RECOMMENDATIONS. THEY HAVE SINCE INCORPORATED RECA ADDITIONS FROM AN OUTSIDE CONSULTANT STAFFING ANALYSIS. FOR EXAMPLE, B.P.D. REALIGNED THE BIKE TEAM

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UNDER THE COMMUNITY SERVICES BUREAU AND FULLY IMPLEMENTED THE -- OFFICERS PROGRAM. B.P.D. NOW HAS THREE TRAINED C.S.O.S. THE DEPARTMENT ALSO INCORPORATED RECOMMENDATIONS FROM THE STAFFING ANALYSIS INTO BUDGETARY DECISION MAKING AND STATED THEY WILL USE THOSE RECOMMENDATIONS. FOR EXAMPLE, IN 2026, THEY EXPANDED THE C.S.O. PROGRAM FROM 21 TO 27 POSITIONS TO SUPPLEMENT STAFFING. ACCORDING TO THE DEPARTMENT, THESE STEPS ARE AIMED TO ENHANCE COMMUNITY SERVICE AND IMPROVE OPERATIONAL EFFICIENCY. I JUST WANT TO THANK THE DEPARTMENT FOR IMPLEMENT THESE RECOMMENDATIONS AND TO THE COMMUNITY FOR THEIR INTEREST AND ENGAGEMENT ON THIS AUDIT. THANK YOU.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. APPRECIATE YOUR COMMENTS THIS EVENING AND IT'S GOOD TO HAVE THAT UPDATE. I'M GLAD TO HEAR HOW OUR POLICE DEPARTMENT HAS JUST ANY UPDATES FOR US. WE WILL NOW TAKE PUBLIC COMMENT ON ANY NONAGE IN THE MATTERS.

>> CITY CLERK: IF YOU WOULD LIKE TO MAKE A COMMENT AND YOU ARE ON ZOOM, PLEASE USE THE RAISED HAND FUNCTION OR PRESS *NINE IF YOU ARE CALLING IN. AGAIN, IF YOU WOULD LIKE TO PROVIDE PUBLIC COMMENT ON NON-AGENDA MATTERS, NOW IS THE TIME TO USE THE RAISED HAND FUNCTION.

>> MAYOR A. ISHII: OH, I THINK SOMEBODY IN THE AUDIENCE IS MAYBE TRYING TO GIVE --

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>> CITY CLERK: WE HAVE CARDS AS WELL. I JUST WANTED TO CHECK THE AMOUNT OF CARDS WE HAVE ASKED THAT DICTATES HOW MUCH TIME IS ALLOTTED. SO WE HAVE FOUR CARDS FOR IN ROOM SPEAKERS AND ONE CALLER ON ZOOM IN. SO EACH SPEAKER WILL BE ALLOTTED TWO MINUTES. THE IN ROOM SPEAKERS ARE MARIA, CAROL MAROSOVICH, C.K., AND CHERYL, I BELIEVE. COME TO THE FRONT AND YOU HAVE TWO MINUTES TO SPEAK.

>> PUBLIC SPEAKER: LAST WEEK WHEN THE HOMELESS RESPONSE TEAM SESSION TRANSPIRED, COUNCILMEMBER TAPLIN TALKED ABOUT DOMESTIC VIOLENCE AND RAISED DOMESTIC VIOLENCE ISSUE. IT IS SUCH AN INDEPENDENT ISSUE THAT REQUIRES SUCH SEPARATE FOCUS. IT'S DIFFERENT FROM THE GENERAL POPULATIONS THAT WE SERVE ON HOMELESSNESS IN THESE AGENCIES ARE GREATLY UNDERFUNDED. WE IN BERKELEY ONLY HAVE ONE TRANSITION HOUSE, BIRDHOUSE, WHICH IS DOING AN EXCEPTIONAL JOB AND IT'S ONLY FOR WOMEN AND FAMILIES. WOMEN WHO GO THROUGH DOMESTIC VIOLENCE WHO EXPERIENCE THIS CANNOT GO TO REGULAR SHELTERS. IT'S NOT CONFIDENTIAL. THE CLIENTS WILL TALK. IT'S NOT SAFE AND IT EXACERBATES ALL THEIR STRESS. WOMEN WHO LEAVE DOMESTIC VIOLENCE SITUATIONS GENERALLY DO SO AFTER AN AVERAGE OF SEVEN TIMES. AND IT'S NOT BECAUSE THEY ARE WEEK. IT'S BECAUSE OF THE COMPLEXITIES, FINANCIAL COMPLEXITIES, THE EMOTIONAL COMPLEXITIES, THE SUPPORT COMPLEXITIES THEY VERY MUCH NEED. AND I CAN GIVE YOU THREE

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EXAMPLES OF WOMEN I WORKED WITH WHICH ARE NOT IN BERKELEY, NOT BERKELEY SPECIFIC. THERE WAS AN OLDER WOMAN WHO I ASSISTED WHO WAS MONOLINGUAL SPANISH. HER HUSBAND MAKE HER SLEEP ON BLANKETS IN THE CORNER. THIS IS A MUCH OLDER WOMAN AND HE WOULD THREATEN HER WITH A MACHETE. THAT WAS AMONG THE MANY OTHER ABUSES. WHEN SHE WAS FINALLY ABLE TO LEAVE, SHE COULD NOT COMMUNICATE WITH THE OUTSIDE WORLD. HE WAS HER BRIDGE TO THE OUTSIDE WORLD, SO SHE ENDED UP GOING BACK. I HAD A WOMAN WHO WAS A POLICE SERGEANT. SHE FINALLY DECIDED TO LEAVE. HE HAD BROKEN HER RIBS ETC. THIS HAD GONE ON FOR MANY YEARS. WHEN SHE FILED FOR DIVORCE, FILED FOR RESTRAINING ORDER ON CHRISTMAS EVE, THE FIVE-YEAR-OLD -- IF I COULD JUST -- THE FIVE YEAR OLD AND SIX CHILDREN, HE KILLED HER, THE FIVE-YEAR-OLD OPENED THE DOOR, HE KILLED HER AND HIMSELF.

>> MAYOR A. ISHII: THANK YOU. OKAY.

>> CITY CLERK: AGAIN, IN ROOM SPEAKERS ARE MARIA, CAROL, CHERYYL, AND C.K..

>> PUBLIC SPEAKER: IT'S QUITE THE LEAD LINE FOLLOW. BATTERED WOMEN. I WORKED WITH MANY ALSO. BUT TODAY, IN TERMS OF OUR GOVERNMENT, WE ARE ALL BEING BATTERED AND WE HAVE A DEPARTMENT OF WAR AND WE HAVE JUST INCESSANT GREED AND EXPLOITATION AND EXTRACTION, WHICH IS WHY I CONSISTENTLY, I HOPE YOU'RE NOT BORED, TRY TO SPEAK TO OUR COMMON HUMANITY AND HOW IT'S EITHER

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GOING TO BE EVERYONE OR NO ONE BECAUSE IF WE KEEP FIGHTING LIKE THIS AND KEEP COMPETING LIKE THIS, HOW CAN WE MAKE MORE AND MORE MONEY, WITH ALL THE PEOPLE I HELP DIANE MY LIFE, I'VE NEVER SEEN ANYONE TAKE MONEY FROM THEM ONCE AND THE PHARAOHS KIND OF PROVED THAT, TOO. SO WHAT I'M SPEAKING TO IS FROM OUR FORMAL MEETING. WE ARE A TRIBAL PEOPLE. WE ARE A COLLECTIVE COLLABORATIVE PEOPLE. IT'S THE ONLY WAY WE HAVE GOTTEN TO HEAR, BUT WE HAVE LOST OUR WAY. SO I JUST REALLY REQUEST THAT WE ALL THINK OF HOW CREATIVE AND BENEVOLENT AND HUMANE HUMANITY MIGHT BECOME BY JUST REMEMBERING THAT WE ARE ALL IN THIS TOGETHER. YOU KNOW, I LIVED IN A SEGREGATED COMMUNITY, A GATED COMMUNITY FOR LIKE FOUR MINUTES. IT'S NOT JUST ME, IT'S WEEK. AND CAN'T WE DO THIS? CAN'T WE GET ALONG LIKE RODNEY KING TRIED TO SAY? SO ANYWAY, BLESS ALL OF US. I JUST -- PEOPLE COULD BE SHELTERED TODAY WITH EVEN MINIMAL STRUCTURES. MRS. WHY I KEEP EMPHASIZING THE SIMPLE AND THE BASIC. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. NEXT SPEAKER.

>> PUBLIC SPEAKER: WE HAVE TWO MINUTES THIS EVENING? OKAY. GREAT. SO WE ARE OUTSIDE BANGING OUR POTS. [BANGING] TO BRING ATTENTION TO THE STARVING CHILDREN OF GAZA AND ALL THE PEOPLE IN GAZA. AND IT REALLY SICKENS ME THAT Y'ALL JUST DON'T CARE ABOUT HUMANITY. AND THAT'S REALLY SAD BECAUSE YOU'RE ELECTED OFFICIALS REPRESENTING BERKELEY. YOU DON'T CARE, YOU DON'T CARE AND YOU'RE

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TALKING WHILE THEY ARE SUPPOSED TO BE LISTENING, DOING EVERYTHING ELSE. Y'ALL NEVER LOOK UP. BUT PEOPLE ARE DYING. I BELIEVE IF BERKELEY WOULD HAVE DONE SOMETHING A LONG TIME AGO, MAYBE YOU COULD HAVE STOPPED THIS, BUT THERE'S STILL TIME. THERE'S AN ARMS EMBARGO THAT YOU COULD DO. ARMS EMBARGO NOW. YOU REALLY NEED TO THINK ABOUT THESE THINGS. DO YOU WANT TO LEAVE A LEGACY OF THE ****** UP COUNCIL THAT YOU ARE? EXCUSE MY LANGUAGE, BUT MILLIONS OF PEOPLE ARE DYING BECAUSE OF YOUR AN ACTION. I REALLY BELIEVE THAT IF BERKELEY WOULD'VE DONE SOMETHING THINGS MIGHT BE DIFFERENT NOW. BUT NO, YOU DON'T. YOU JUST LOOK AT ME LIKE I'M -- I DON'T KNOW. BUT IT'S SAD. IT'S SAD THAT YOU DON'T REPRESENT ME, BUT YOU REPRESENT OTHER PEOPLE IN BERKELEY AND THAT YOU DON'T CARE ABOUT HUMANITY. THAT JUST WONDER HOW YOU FEEL ABOUT YOURSELF. YOU MUST NOT LOVE YOURSELF THAT MUCH EITHER, WHICH IS REALLY SAD. SO LOVE YOUR SELF AND LOVE YOUR COMMUNITY. LOVE YOUR RESIDENCE THAT ELECTED YOU INTO OFFICE. DO SOMETHING. JUST DON'T SIT THERE LOOKING LIKE A -- I WON'T SAY. FREE PALESTINE, FREE PALESTINE, FREE PALESTINE.

>> MAYOR A. ISHII: THANK YOU. NEXT SPEAKER.

>> CITY CLERK: WE HAVE ONE MORE IN ROOM SPEAKER. THE CARD SAYS C.K..

>> PUBLIC SPEAKER: BERKELEY CITY COUNCIL --

>> CITY CLERK: GO AHEAD AND MOVE THE MIC UP.

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>> PUBLIC SPEAKER: MY NAME IS ED AND I WANT TO THANK THE BERKELEY CITY COUNCIL AND IN PARTICULAR MAYOR ADENA ISHII FOR THE FINE JOB SHE'S DONE. I WASN'T BORN HERE, BUT I'VE LIVED HERE ALL MY LIFE. I WENT TO HIGH SCHOOL AND COLLEGE HERE. I HAD AN INTERACTION. I NEVER ONCE FELT COMPELLED TO ATTEND A BERKELEY CITY COUNCIL MEETING. THIS IS THE FIRST TIME I'VE EVER DONE IT AND I'M IN MY MID-50S. I THINK YOU GUYS ARE DOING A FANTASTIC JOB. I COULDN'T DISAGREE MORE WITH THE PREVIOUS SPEAKER, IN A PARTICULAR MAYOR ISHII IS DOING AN EXCELLENT JOB. I'VE LIVED HERE AND WENT TO SCHOOL HERE AND FEEL COMPELLED TO TALK TO YOU PEOPLE ABOUT ONE OF THE WORST ABUSES I'VE EVER SEEN, AND I DON'T HAVE THE TIME NOR THE APPROPRIATE VENUE, BUT I'D LIKE TO SET UP A TIME TO MEET WITH BOTH THE APPROPRIATE DISTRICT MEMBER AS WELL AS A REPRESENTATIVE, A STAFF MEMBER OF THE MAYOR'S OFFICE IF NOT THE MAYOR HERSELF, SOMETHING HAPPENED THAT WAS SO EGREGIOUS IN NATURE THAT A CONTRADICTS NOT ONLY THE LAW, BUT THE VERY FUNDAMENTAL ETHICS OF BERKELEY. AND I'VE NEVER ONCE, TO A CITY COUNCILMEMBER. IT'S SO -- I'VE BEEN TRYING TO MEET WITH COUNCILMEMBER TREGUB. HI, I'M THE PERSON THAT'S BEEN EMAILING YOU. I LIKE TO MEET WITH EITHER A COUNCILMEMBER OR MEMBER OF STAFF WITH THE MAYOR'S OFFICE. I DON'T WANT TO TAKE UP TOO MUCH TIME BECAUSE I KNOW YOU ALL ARE BUSY. NOW IS NOT THE APPROPRIATE TIME OR PLACE TO DIVERGE DETAILS, BUT I THINK IT IS SOMETHING

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THAT WOULD BE OF EXTREME INTEREST AND ALSO VERY GERMANE WITHIN THE PURVIEW OF BOTH THE COUNCILMEMBER AS WELL AS THE MAYOR'S OFFICE. CAN YOU DIRECT ME IN THAT DIRECTION?

>> MAYOR A. ISHII: YEAH. THANK YOU. I THINK MY STAFF IS ACTUALLY GOING TO GET A CARD FROM YOU. THANK YOU SO MUCH. THANK YOU FOR REACHING OUT. THANK YOU FOR LETTING US KNOW ABOUT THAT. THANK YOU. [BANGING]

>> CITY CLERK: OKAY. WE HAVE ONE MORE SPEAKER ON ZOOM. SPEAKER WITH THE NUMBER -- CALLER WITH A NUMBER ENDING IN 211, YOU SHOULD BE ABLE TO UNMUTE AND YOU HAVE TWO MINUTES.

>> PUBLIC SPEAKER: HI. GOOD EVENING. FIRST OF ALL, MY ASSISTANT, ROY, DELIVERED SOME -- FOR YOU TODAY. THERE ARE TWO VACANT PLACES TO RENT. THEY HAVE BEEN USED FOR PRIVATE OR NOT PRIVATE PROPERTY. -- OKAY. WHAT'S HAPPENING IN WASHINGTON D.C. IS DESPICABLE. DESPICABLE. TOOK YEARS FOR FASCISTS TOOK OVER GERMANY, ITALY, ARGENTINA. IT'S TAKEN WEEKS. I HAVE -- COMPANY. THIS MAN FIRE HUNDREDS OF THOUSANDS OF PEOPLE. HE IS DESTROYING THIS COUNTRY. WE CANNOT DO ANYTHING ABOUT IT. WE CANNOT DO ANYTHING ABOUT IT. WE NEED TO FIGURE IT OUT AND GO FORWARD. THE OTHER PART, WHAT IS HAPPENING IN GAZA IS DISGRACE TO HUMANITY. THERE'S NO REASON TO KILL PEOPLE BECAUSE YOU ARE A DIFFERENT RELIGION. THERE'S NO REASON WHATSOEVER. JUICE KILLING MUSLIM OR CHRISTIAN IS NO DIFFERENT THAN -- HAVE A GOOD NIGHT.

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>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: THAT WAS OUR LAST SPEAKER.

>> MAYOR A. ISHII: OKAY. VERY GOOD. FOR THE CONSENT CALENDAR, DO ANY OF MY COUNCILMEMBERS HAVE COMMENTS? COUNCILMEMBER BARTLETT IS ON THE QUEUE, BUT I THINK MAYBE WHEN HE COMES BACK. YES. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: YES. THANK YOU VERY MUCH, MADAME MAYOR AND GOOD EVENING, EVERYONE. I JUST HAVE ONE COMMENT ON TONIGHT'S CONSENT CALENDAR. IT IS A COMMENT ON ITEM NUMBER 14. I WOULD LIKE TO RELINQUISH $500 TO THIS SACRED REST DROP-IN CENTER LANDLINE.

>> CITY CLERK: I'M SORRY, COULD YOU SAY ONE MORE TIME THE AMOUNT?

>> T. TAPLIN: 500.

>> CITY CLERK: 500. THANK YOU.

>> MAYOR A. ISHII: OKAY. OH, YOU'RE BACK. COUNCILMEMBER BARTLETT. [BANGING]

>> B. BARTLETT: TO THE CONSENT CALENDAR, I JUST WANTED TO CALL A COUPLE OF THINGS THAT I THINK REALLY DESERVE ATTENTION. NUMBER SEVEN, THIS IS THE CONTRACT FOR EASY DOES IT. THEY ARE AN ORGANIZATION -- THAT HAD SOME CHANGES, SOME DRAMA, AND SOME ISSUES, BUT I'M REALLY GLAD WE ARE ABLE TO GET THEM FUNDED AND UP AND AT IT AGAIN. THANK YOU, CITY MANAGER, FOR HELPING US WITH IT. VERY GOOD GROUP. AND THEN ITEM 12. SUPPORT FOR ITEM 12. THIS

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IS -- [BANGING] THE NEW CALIFORNIA PROPOSITION 50. THE ELECTION RIGGING RESPONSE ACT. IT'S REFRESHING TO SEE SOME DEMOCRATIC STRENGTH AND SOME ENERGY, SOME ENERGY TO CONFRONT WHAT'S GOING ON HERE. I'M REALLY HAPPY TO SEE IT, SO THANK YOU, COUNSELOR, FOR CALLING THIS OUT. LASTLY, ITEM 11. THIS IS THE VICE MAYOR TAPLIN'S ITEM, RECREATION AND COMMUNITY FACILITY IMPROVEMENT MEASURES. HAPPY TO BE COSPONSOR OF THIS ITEM. FACILITIES ARE BEING USED BY PEOPLE. ALSO GET MORE EQUITY AS CERTAIN PARTS OF THE CITY HAVE MORE DECAYING AND FEWER RESOURCES FOR RECREATION AS WELL. I WANT TO THANK THE VICE MAYOR. WHILE I'M AT IT, I WANT TO CALL THE VICE MAYOR AGAIN. IT'S YOUR LAST NIGHT SERVING AS VICE MAYOR. AND I KNOW IT'S A THANKLESS -- [LAUGHTER] THANKLESS ROLE. I WANT TO SAY YOU HAVE SERVED IT NEARLY AS GOOD AS ANYONE. [BANGING] [LAUGHTER] THANK YOU. AS GOOD AS ANYONE. THANK YOU. THANK YOU.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANK YOU. I WILL SAY IT NOT AS WELL AS VICE MAYOR TAPLIN DID -- I JUST WAS COMMENTING ON THE RELATIVE. ON A COUPLE OF COMMENTS ON THE CONSENT CALENDAR. FIRST I WANT TO HIGHLIGHT ITEM 1 IS THE SECOND READING OF THE ORDINANCE, SO WE ARE OFFICIALLY ENACTING THAT TONIGHT AND REALLY PROUD OF OUR CITY FOR DOING THAT, PROUD TO BE A COSPONSOR OF IT. JUST WANTED TO NOTE THIS IS THE OFFICIAL SECOND READING TONIGHT AND

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HOPEFULLY WILL GO INTO EFFECT. THANKS FOR EVERYONE FOR THAT. ITEM 3, THANK THE CITY MANAGER FOR HIS COMMENTS THE $80 MILLION GRANT ITEM. WANT TO ECHO A COUPLE OF THINGS HERE. THIS IS A NO MATCH GRANT FROM THE CITY. IT'S A NET POSITIVE $8 MILLION TO THE CITY. IT HELPS IMPLEMENT BERKELEY PASTA VS CARE BRIDGE PROGRAM, WHICH IS A REENTRY INITIATIVE FOR INDIVIDUALS -- AND BEHAVIORAL HEALTH NEEDS. IN TERMS OF AS A CITY WHEN WE'RE THINKING ABOUT ADDRESSING OUR CRISIS WITH RESPECT TO HOMELESSNESS, THIS IS AN IMPORTANT PROGRAM AND THIS FUNDING WILL BE UTILIZED TO HELP US GO AT SOME OF THE ROOT CAUSES. I JUST WANTED ECHO THE APPRECIATION FOR THIS GRANT -- [BANGING] ITEM 11, WHICH VICE MAYOR TAPLIN AUTHORED -- [BANGING] ON THE RECREATION AUTHORITIES. WAS PROUD TO COSPONSOR IT. IT'S IMPORTANT THAT WE DO FIND FUNDING SOURCES TO REHABILITATE RECREATIONAL FACILITIES, SO LOOKING FORWARD TO THAT WORK. THANK COUNCILMEMBER TREGUB FOR ALLOWING ME TO COSPONSOR PROP 50. WITH RESPECT TO CONTROL OF THE HOUSE OF REPRESENTATIVES FEDERAL LEVEL AND CALIFORNIA'S ROLE IN REDISTRICTING. SO THANK YOU FOR OFFERING THAT ITEM. ITEM 13, COUNCILMEMBER O'KEEFE, I WOULD ASK IF I COULD BE ADDED AS A COSPONSOR ON THE BERKELEY ARTS CENTER FALL DINNER. I WOULD LIKE TO CONTRIBUTE $250 TO MY OFFICE ACCOUNT FOR THAT. ITEM 14, THANK COUNCILMEMBER LUNAPARRA FOR THIS ITEM. WOULD LIKE TO DONATE $250 FROM OUR OFFICE FOR THAT. ALSO, ON ITEM 15, WANTED TO THANK

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COUNCILMEMBER LUNAPARRA AND HER TEAM FOR HER LEADERSHIP ON THIS MEASURE AROUND ADDRESSING SOME OF THE CONCERNS WE HAVE IN THE MICRO MOBILITY PROGRAM IN BERKELEY. WE DO RECOGNIZE THERE IS VALUE IN HAVING MICRO MOBILITY DEVICES IN THE CITY. IT'S AN IMPORTANT MODE OF TRANSPORTATION FOR MANY OF OUR RESIDENTS. AT THE SAME TIME, WE HAVE SEEN A PROLIFERATION OF MISUSE, BAD PARKING OF DEVICES IN THE PUBLIC RIGHT-OF-WAY. IT AFFECTS PEOPLE IN MY DISTRICT. IT AFFECTS PEOPLE IN ALL DISTRICTS. THIS WOULD HELP BRING SOME OF THE FEES UP TO PAY READY WITH OTHERS THAT WOULD HELP FUND THIS PROGRAM AND MAKE IT MORE SUCCESSFUL AND REDUCE THE STRAIN ON THE REST OF THE CITY AND RESIDENTS HERE. I WANT TO THANK COUNCILMEMBER LUNAPARRA FOR HER LEADERSHIP ON THAT. AND I WAS PROUD TO COSPONSOR THAT AS WELL. LASTLY, THANK THE CITY AUDITOR AND BERKELEY POLICE DEPARTMENT FOR THEIR WORK ON ITEM 21, WHICH IS THE AUDIT OVER TIME. I KNOW THE AUDIT IS NEARLY COMPLETE, BUT THE CITY GATE REPORT, WHICH UTILIZED A LOT OF THE WORK THAT B.P.D. CONTINUES TO DO. [BANGING] WITH THAT, I'M DONE. THANKS.

>> MAYOR A. ISHII: THANKS. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANKS. I WANT TO FIRST EXPRESS MY SINCERE GRATITUDE TO CARRIE WHO WAS INSTRUMENTAL IN SECURING THE $8 MILLION. HER COMMITMENT TO RESTORATIVE JUSTICE IS APPARENT AND WE ARE SO GRATEFUL. [APPLAUSE] THANK YOU TO MY COLLEAGUES WHO

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HAVE DONATED TO ITEM 14, THE SACRED REST DROP-IN CENTER. THIS WILL HELP OFFSET THE COST OF A LANDLINE PHONE. PEOPLE CURRENTLY USE PERSONAL CELL PHONES FOR THIS, WHICH IS NOT SUSTAINABLE. I RESPECT FULLY ASKED THAT MY COLLEAGUES JOINED TO SUPPORT THIS SERVICE. I WOULD ALSO LIKE TO GIVE $200 TO THE BERKELEY ART CENTER COMMUNITY DINNER AND ADDING ON TO WHAT COUNCILMEMBER BLACKABY WAS EXPLAINING ABOUT ITEM 15, THIS IS A REFERRAL TO THE CITY MANAGER'S OFFICE TO AMEND THE CITY MICRO MOBILITY FEE STRUCTURE TO BRING IT UP TO RATE BY GENERATING REVENUE FOR BIKE INFRASTRUCTURE. IS A COUNCIL, WE RECEIVE MANY COMPLAINS ABOUT IMPROPER PARKING AND A STUDY ACROSS FIVE MAJOR US CITIES -- SHARED MICRO MOBILITY PROGRAMS ARE BECAUSE OF IMPROPERLY PARKED VEHICLES. THERE'S ALSO DATA THAT SUGGESTS THAT BUILDING MORE PARKING INFRA STRUCTURE GREATLY REDUCES THE RATE OF IMPROPER PARKING. SO WE CAN RETAIN WHAT IS VALUABLE, WHICH IS THIS PROGRAM THAT PEOPLE USED TO GET AROUND THE CITY WHILE ALSO IMPROVING THE CHALLENGES. I'M APPRECIATIVE OF THE FEEDBACK AND ALSO WANT TO THANK DEPUTY DIRECTOR AND THEIR TEAM FOR THE TREMENDOUS WORK THEY ARE DOING TO BALANCE A SAFE AND EFFECTIVE PROGRAM MOVING FORWARD. THANK YOU. AND I'M VERY GRATEFUL FOR THE SERIOUSNESS WITH WHICH YOU TAKE THIS ISSUE. IN ADDITION TO THIS REFERRAL, WE WILL ALSO BE COLLABORATING WITH UC BERKELEY TO COLLABORATE OUTREACH. THIS IS JUST ONE PART OF THE PUZZLE. THANK

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YOU SO MUCH.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. MOVING ON TO COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: THANK YOU, MADAME MAYOR. I WANT TO SPEAK ABOUT ITEM 13. THANK YOU SO MUCH TO MY COLLEAGUES WHO HAVE DONATED AND I ENCOURAGE THE REST OF YOU TO CONSIDER DONATING. THE BERKELEY ARTS CENTER IF YOU DON'T KNOW IT IS SO SPECIAL. I'M ACTUALLY DELIGHTED TO HAVE AN OPPORTUNITY TO SUPPORT IT BECAUSE IT'S THE BEST-KEPT SECRET OF DISTRICT 5. IT SHOULD NOT BE A SECRET. EVERYBODY SHOULD KNOW ABOUT IT. THERE'S THE MAIN PART OF RIVE OAK PARK AND ACROSS WALNUT THERE'S THIS SMALLER SECTION THAT HAS THIS BEAUTIFUL BUILDING. HAS THIS AMAZING ART GALLERY SPACE IN IT. AND IT'S BEEN AROUND SINCE 1967. THEY SHOWCASE LOCAL ARTISTS AND CURATORS, AND I WANT TO NOTE THEY ALSO PAY THEIR ARTISTS AND CURATORS COMPETITIVELY, WHICH IS REALLY UNUSUAL. THEY DO AMAZING WORK, DIFFERENT SHOWS ALL THE TIME. IT'S AN AMAZING SPACE. I'M GLAD TO TAKE A MOMENT TO HIGHLIGHT THEIR WORK AND EXISTENCE AND TO SUPPORT THEIR COMMUNITY DINNER, WHICH IS GOING TO BE OCTOBER 16 COMING UP AT 6:00 P.M. SO THANK YOU AGAIN FOR DONATING. OH, AND I ALSO -- SPEAKING OF DONATING WOULD LIKE TO GIVE $250 TO ITEM 14. THOSE ARE ALL MY COMMENTS. [BANGING]

>> MAYOR A. ISHII: GREAT. THANK YOU VERY MUCH. COUNCILMEMBER HUMBERT.

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>> M. HUMBERT: THANK YOU VERY MUCH, MADAME MAYOR. I WANT TO HIGHLIGHT ITEM 12. IT IS CRITICAL THAT WE ALL VOTE IN FAVOR OF PROPOSITION 50, AND I REALLY APPRECIATE THE WORK COUNCILMEMBER TREGUB -- [BANGING] -- AND HIS FELLOW COUNCIL NUMBERS WHO HAVE COSPONSORED IT TO MOVE THIS ONE FORWARD. 13 I'D LIKE TO CONTRIBUTE $250 TO THE COMMUNITY DINNER FROM OUR DISCRETIONARY FUNDS IN DISTRICT 8. AND THAT SOUNDS LIKE -- I NEED TO GO OVER THERE AND SEE THIS PLACE. I'VE NEVER BEEN.

>> MAYOR A. ISHII: THANK YOU.

>> M. HUMBERT: ITEM 14, I'D LIKE TO CONTRIBUTE $250 TO HELP THE SACRED REST DROP-IN CENTER PURCHASE AND MAINTAIN A LANDLINE. THAT SOUNDS LIKE IT'S VERY IMPORTANT. AND 15, I WANT TO REALLY COMMEND COUNCILMEMBER LUNAPARRA'S TEAM, THE COUNCILMEMBER HERSELF, AND HER AIDES AND HER WHOLE TEAM WHO WORKED REALLY HARD ON THIS PRODUCT. I'M REALLY PROUD TO COSPONSOR IT. I'M LOOKING FORWARD TO SEEING MICRO MOBILITY CORRALS AND NOT THE SCOOTERS LITTERED AROUND THE SIDEWALK WHERE WE HAVE TO READ ABOUT, YOU KNOW, PEOPLE WITH IMPAIRED SITE TRYING TO NAVIGATE THROUGH A TANGLE OF THEM. IF THEY ARE IN A CORRAL, YOU KNOW, NEAR A RED CURBED CROSSWALKS, THAT WILL BE WONDERFUL. AND THANKS AGAIN. THIS WAS REALLY A GREAT EFFORT ON THE PART OF DISTRICT 7. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TREGUB.

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>> I. TREGUB: THANK YOU SO MUCH. I WOULD LIKE TO CONTRIBUTE $100 FROM MY G 13 ACCOUNT TOWARDS ITEMS ROUTINE AND 14. AND THANK THE AUTHORS FOR THOSE ITEMS. I WOULD LIKE TO THANK MY COLLEAGUES FOR YOUR SUPPORT OF ITEM 12. THIS WAS, BECAUSE OF THE BROWN ACT, I COULD ONLY ADD THREE OTHER SPONSORS, BUT I WAS SO HEARTENED TO SHOW SO MUCH INTEREST. FRIENDS, THIS IS REALLY THE BEST OPPORTUNITY, THE MOST IMMEDIATE OPPORTUNITY THAT WE HAVE TO NOT ONLY DEFEND OUR DEMOCRACY NATIONALLY, BUT WE CAN DO IT IN OUR VERY OWN BACKYARDS BY TALKING TO NEIGHBORS ABOUT THE IMPORTANCE OF PASSING PROP 50 THIS NOVEMBER. I ALSO WISH TO THANK VICE MAYOR TAPLIN FOR HIS ITEM 11, AND IT WAS AN HONOR TO COSPONSOR THIS ITEM SINCE THIS ALSO DEALS WITH SEVERAL HISTORIC BUILDINGS THAT NEED A LOT OF LOVE AND A LOT OF MAINTENANCE IN MY DISTRICT. [BANGING] AND LASTLY, I WISH TO ALSO THANK ON ITEM 15 COUNCILMEMBER LUNAPARRA. IT'S BEEN A PLEASURE WORKING WITH HER OFFICE AND WITH ALL OF MY COSPONSORS AS WELL AS WITH THE PUBLIC WORKS DIRECTOR. AND I JUST WANTED TO EMPHASIZE AND ECHO WHAT SOME HAVE ALREADY MENTIONED. THIS IS NOT THE END ALL BE ALL. THIS IS A VERY IMPORTANT STEP FORWARD, BUT THE WORK CONTINUES. THE WORK WILL CONTINUE UNTIL SUCH TIME AS I DON'T HAVE TO PERSONALLY MOVE MICRO MOBILITY DEVICES THAT ARE MAYBE PARKED IN THE MIDDLE OF THE PUBLIC RIGHT OF WAY ON MY 15 MINUTE WALK TO THE OFFICE EVERY DAY. BUT I HAVE SEEN A LOT OF IMPROVEMENT

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ALREADY. SO I ALSO WANT TO THANK THE VENDORS. I THINK ONE OF THEM MAY BE LISTENING IN. FOR THEIR COLLABORATION AND THEIR WILLINGNESS TO SAY YES, ASSESS US THE FUNDING AMOUNT THAT NEEDS TO BE ASSESSED TO MAKE THIS HAPPEN. AND I WANT TO THANK PUBLIC WORKS AS WELL. WE MOST RECENTLY MET LAST WEEK AND VERY EXCITING TO SEE SOME OF THE INFRASTRUCTURE IMPROVEMENTS THAT MAY BE COMING ON THAT FRONT. AND I KNOW I SAID THIS WAS THE LAST THING I WAS GOING TO SAY, BUT I ALSO WANTED TO ECHO COUNCILMEMBER LUNAPARRA IN THANKING STAFF, AND IN PARTICULAR KERRY. I'M EXCITED TO SEE THIS ITEM MOVE FORWARD. THANK YOU.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. AS A MEMBER KESARWANI.

>> R. KESARWANI: THANK YOU, MADAME MAYOR. ALSO WANT TO CHIME IN THANK COUNCILMEMBER TREGUB FOR HIS LEADERSHIP. I ALSO WANT TO BE RECORDED AS DONATING $100 TO THE ART CENTER'S FALL 2025 DINNER AND $100 TO THE SACRED REST DROP AND CENTER LANDLINE. AND THEN FINALLY, I ALSO WANTED TO THANK COUNCILMEMBER LUNAPARRA FOR THE ITEM RELATED TO THE SHARED MICRO MOBILITY PROGRAM AND HOPE THAT CAN MAKE A DIFFERENCE IN MAKING OUR SIDEWALK SAFER FOR PEDESTRIANS. OKAY. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU VERY MUCH. I MISSPOKE EARLIER. I WANTED TO THANK MY COLLEAGUES FOR THEIR SUPPORT OF ITEM 11 AS WELL AS PARKS AND PUBLIC WORKS FOR THEIR COLLABORATION AND GUIDANCE. I

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WANT TO RELINQUISH $250 TO THE BERKELEY ART CENTER COMMUNITY CENTER. I WAS WONDERING IF THERE MIGHT BE ROOM TO COSPONSOR.

>> I BELIEVE I HAVE SPACE FOR ONE MORE AND IT'S YOURS.

>> T. TAPLIN: THANK YOU SO MUCH.

>> THANK YOU.

>> MAYOR A. ISHII: COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU, MADAME MAYOR. I WANTED TO BE SURE TO CONTRIBUTE FROM ID 13 ACCOUNT $250 TO THE BERKELEY ART CENTER FALL DINNER, ITEM 13. AND THEN ALSO ON 14, ALSO CONTRIBUTING $200 TO THE SACRED REST DROP-IN CENTER, THERE LANDLINE.

>> MAYOR A. ISHII: OKAY. COUNCIL NEVER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. I ALSO JUST WANTED TO THANK COUNCILMEMBER TREGUB FOR THE ITEM ON PROP 50 AND THANK YOU FOR ALLOWING ME TO COSPONSOR.

>> MAYOR A. ISHII: THANKS FOR YOUR WORK. SO I WOULD LOVE TO ADD MYSELF TO ITEM 14 AND ALSO PUT $250 FROM OUR FUNDS INTO THAT. THANK YOU ALL SO MUCH FOR BEING HERE AS WELL. THAT IS REALLY A VERY IMPORTANT SERVICE. AND WE WANT TO JUST SAY A FEW WORDS ABOUT ITEM NUMBER THREE AS WELL. THANK YOU, CITY MANAGER, FOR THOSE COMMENTS. ALSO A BIG THANK YOU AS WELL TO KERRY HAS GOTTEN A BIG SHOUT OUT TONIGHT. HOUSING AND PUBLIC SAFETY ARE SOME OF MY TOP PRIORITIES IN THIS $8 MILLION GRANT. THE GREAT THAT OUR CITY IS PAYING ATTENTION TO OPPORTUNITIES AND TAKING ADVANTAGE

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OF THOSE OPPORTUNITIES SO WE CAN CONTINUE TO SERVE OUR COMMUNITY IS REALLY IMPORTANT. BERKELEY CARE WILL BE DEDICATED TO PROVIDING TRANSITIONAL HOUSING FOR SUPPORTIVE SERVICES FOR FOLKS WHO HAVE BEEN IN AND OUT OF THE JUSTICE SYSTEM IN THE PAST THREE YEARS AND WITH THIS FUNDING WILL BE ABLE TO SERVE APPROXIMATELY 60-80 PEOPLE PER YEAR. THIS IS A TREMENDOUS OPPORTUNITY TO HELP DIVISIONALS BREAK THE CYCLE OF RECIDIVISM BY PROVIDING STABILITY AND INTEGRATED SERVICES. WE KNOW THERE'S NOT A ONE-SIZE-FITS-ALL SOLUTION TO HOMELESSNESS OR RECIDIVISM. WHILE BEING UNHOUSED IS NOT THE CRITERIA FOR THIS PROGRAM, WE KNOW THAT INDIVIDUALS WHO ARE IN AND OUT OF THE JUSTICE SYSTEM OFTEN FIND THEMSELVES HOMELESS OR IN UNSTABLE HOUSING. BERKELEY IS LEVERAGING EVERY SERVICE AVAILABLE TO BRING PEOPLE TOWARD SAFETY, SECURITY IN THEIR LIVES AND I THINK WE SHOULD REALLY BE CELEBRATING THAT. THANK YOU ALL AGAIN FOR YOUR WORK THERE. AND I THINK THAT IS THE REMAINDER OF MY COMMENTS. OKAY. VERY GOOD. IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

>> I SO MOVE.

>> CITY CLERK: AND PUBLIC COMMENT AS WELL?

>> MAYOR A. ISHII: SORRY. APOLOGIES, YES. IS THERE PUBLIC COMMENT ON INFORMATION ITEMS OR CONSENT CALENDAR ONLY?

>> PUBLIC SPEAKER: LOTS OF GOOD THINGS ON THIS AGENDA, BUT I'M SO EXCITED ABOUT ITEM 3. I HEARD A PRESENTATION LAST YEAR FROM

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RED STATE INDIANA ACCOUNT HE WAS DOING EXACTLY WORKING WITH PERSONS WHO HAD CONTACT WITH CRIMINAL JUSTICE SYSTEM. THEY ARE PROVIDING MENTAL HEALTH AND SUBSTANCE USE AND HOUSING SUPPORT. IT WAS A REALLY GREAT SYSTEM. AND I WAS THINKING HOW CAN A RED STATE BE DOING THIS AND BERKELEY ISN'T DOING THIS? AND NOW BERKELEY IS DOING THIS. AND THIS IS SUCH A SUBSTANTIAL AMOUNT OF MONEY. I'M SO HAPPY THAT BERKELEY LOOKED TOWARDS THIS. THE SYSTEM CAN BE SO SKEWED AND THIS IS TO BRING THESE ISSUES TOGETHER THE WAY THEY NEED TO BE ADDRESSED AND THE WAY THE PERSONS NEED TO BE SUPPORTED, THE WAY THE GENERAL COMMUNITY NEEDS TO BE SUPPORTED. THIS IS JUST A GREAT ACCOMPLISHMENT THAT THE CITY MANAGER'S OFFICE LOOKED TOWARD THIS GRANT AND RECEIVED THIS GRANT. I TRUST THAT THE OVERSIGHT WILL BE GOOD AND IT'S JUST GREAT. I HAVE TO ADD THAT THIS WAS SO DISRESPECTFUL TO THE YOUNG MAN HONORING HIS FATHER'S DEATH TO HAVE TO HEAR THIS OUTSIDE, TO HAVE TO HEAR THIS DISRUPTION, AND THAT IS INHUMANITY.

>> MAYOR A. ISHII: THANK YOU, CAROL. THANKS FOR SAYING THAT.

>> PUBLIC SPEAKER: HELLO. I'M EXCITED TO INTRODUCE MYSELF AS A NEW EXECUTIVE DIRECTOR AT THE BERKELEY ARTS CENTER. THIS SMALL BUT MIGHTY ART CENTER HAS BEEN SERVING THE NEIGHBORHOOD AND LOCAL ARTS COMMUNITY FOR THE PAST 58 YEARS. I'M HONORED TO BE AT THE CENTER THAT CONTINUES TO PROVIDE COMPELLING ARTS EXHIBITIONS

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AND PUBLIC PROGRAMS AND SUPPORTING ARTISTS AND CULTURAL WORKERS FROM DIVERSE ARTS COMMUNITIES. I'M LOOKING FORWARD TO CONNECTING WITH MY NEIGHBORS IN THE BAY COMMUNITY. [BANGING] IT'S BEEN ALMOST 2 MONTHS, SO I'M STILL RELATIVELY NEW THERE. BUT I HAVE BEEN PART OF THE BERKELEY OUR COMMUNITY FOR THE PAST FIVE YEARS. I ACTUALLY USED TO WORK WHERE COUNCILMEMBER TAPLIN I THINK WE MIGHT HAVE INTERACTED AT SOME POINT. IT'S ALSO NICE FOR ME TO BE NOW IN DISTRICT 5 WITH COUNCILMEMBER O'KEEFE. BUT I'M INSPIRED BY THE COMMUNITY CONTINUED SUPPORT THROUGHOUT THE YEARS. THANK YOU FOR YOUR SUPPORT. IT MAKES OUR WORK MORE RELEVANT AND I HOPE TO SEE YOU AT THE COMMUNITY DINNER. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: I AM TOM, DISTRICT 2. I MAY HOMECARE WORKER WITH THE IHSS. I'M ALSO A MEMBER ON THE COMMISSION OF AGING, BUT I'M HERE SPEAKING FOR MYSELF AS AN INDIVIDUAL. I WOULD LIKE TO THANK YOU FOR YOUR SUPPORT ON ITEM 667 ON THE GRANDPARENT EASY DOES IT. THESE ARE REALLY GOOD WERE THE SERVICES. I ALSO WANTED TO THANK YOU FOR CERTAINLY ANY SUPPORT FOR PROP 50. MY UNION, SCIU 115 SUPPORTS IT. WE WENT DOOR-TO-DOOR AND REALLY GRATIFYING TO SEE THE SUPPORT. I'M STILL WAITING TO SEE MY YARD SIGN, BUT I'M HAPPY TO SEE ALL THE SIGNS GOING UP IN BERKELEY AND REACH OUT TO SEE IF I CAN GET MY SIGN UP WITHIN THE NEXT FEW DAYS. THANKS.

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>> MAYOR A. ISHII: THANKS, TOM. THANKS FOR COMING. [BANGING]

>> PUBLIC SPEAKER: HELLO AGAIN, AND IT'S GREAT TO SEE THAT CAROL GOT ALL EXCITED ABOUT THIS THING THAT WE ACTUALLY ACCOMPLISHED. I LOVE TO SEE IT WHEN SHE'S HAPPY BECAUSE HOLISTICALLY, YOU KNOW, WE NEED TO BE -- THIS IS WHERE WE CAN EXPAND OUR HORIZON IN TERMS OF BEING HOLISTIC. IN ALL THE THINGS THAT PEOPLE NEED. NOT JUST ONE. ANYWAY, I'M REALLY THANKFUL FOR THE EASY DOES IT BECAUSE I HAVE DIRECT EXPERIENCE WITH HOW USEFUL THEY ARE IN HEALTHCARE, HOMECARE, AND REPAIR. IT'S PRETTY TOUGH TO GET STRANDED ON A STREET SOMEWHERE WITH A WHEELCHAIR THAT DOESN'T WORK, SO THANK YOU FOR THAT. I ALSO HAVE MAJOR DIRECT EXPERIENCE WITH THE SACRED REST AND THE VILLAGE OF LOVE RUN BY PEOPLE'S PARK FOR YEARS. I DISTRIBUTED TONS OF FOOD FOR THEM AND INTERACTED WITH PEOPLE IN PEOPLE'S PARK. IT'S REALLY GOOD TO KNOW WHERE OUR MONEY GOES, WHERE DIRECT EXPERIENCE GOES SO YOU KNOW IT'S NOT JUST GOING OUT THERE SOMEWHERE. WHEN I WAS DOING CONSTRUCTION, I DID NOT MAKE ANY MONEY ON MY MATERIALS OR SUBS. IT'S LIKE CUT IT TO WHERE IT NEEDS TO BE AND WHERE IT NEEDS TO GO AND SACRED REST AND VILLAGE OF LOVE GETS IT DONE. I AM SO GRATEFUL TO THEM AND ALL OF YOU. HAVE A GREAT EVENING. I'M GOING TO GO NOW.

>> MAYOR A. ISHII: THANKS.

>> PUBLIC SPEAKER: HELLO. I'M JOEY HARRISON, THE EXECUTIVE

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DIRECTOR AND FOUNDER OF THE VILLAGE OF LOVE, THE OPERATION AT SACRED REST DROP IN CENTER. I WANT TO THANK YOU SO MUCH FOR YOUR COMMENTS. THANK YOU, THANK YOU. [LAUGHTER] AND I WANT TO THANK YOU ALL SO MUCH FOR CONTRIBUTING. THANK YOU. THANK YOU, COUNCILMEMBER LUNAPARRA. THANK YOU SO MUCH. THIS MEANS A LOT. BERKELEY IS HOME FOR ME. YOU KNOW, I STARTED DOING OUTREACH HERE AND WHEN I FIRST STARTED HERE IN BERKELEY. I'M ALSO ON THE BOARD OF DIRECTOR FOR HOUSING. SO I OPERATE THE SACRED REST. BUT I STARTED DOING THE WORK UPTOWN DOWNTOWN BERKELEY DOING OUTREACH AND THAT'S WHERE I GOT STARTED. YEARS LATER STARTED THE VILLAGE OF LOVE AND WE CAME BACK TO BERKELEY BACK HOME, AND THANK YOU ALL SO MUCH.

>> MAYOR A. ISHII: THANK YOU. ARE THERE COMMENTS ONLINE?

>> CITY CLERK: LET ME JUST CONFIRM. OKAY. WE HAVE ONE COMMENT. THE CALLER WITH THE NUMBER ENDING 000, YOU MAY UNMUTE. JUST AS A REMINDER, THESE ARE COMMENTS SPECIFIC TO THE CONSENT CALENDAR.

>> PUBLIC SPEAKER: YES, CONSENT ITEM NUMBER ONE. I WANT TO MENTION THIS COUNTRY WAS BUILT BY IMMIGRANT. NATIVE AMERICANS PLAYED A BIG ROLE AS WELL. DURING THE FIRST ADMINISTRATION, ALMOST 1 AND A HALF MILLION AMERICANS DIED WHEN DONALD TRUMP CALLED COVID-19 A HOAX. ALSO, -- MISTREATING BEAUTIFUL MEXICAN PEOPLE, LATIN PEOPLE, BROWN PEOPLE. IT'S DISGUSTING. IN 1960S I SAW BLACK PEOPLE TREAT BADLY. I HAD MANY DISCUSSION WITH -- WE

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ARE SEEING IT ALL OVER AGAIN. THAT HAS TO STOP. BY THE WAY, WATCH YOUR -- SKYROCKET. NEVERMIND MONEY IS DWINDLING IN THIS COUNTRY BECAUSE THIS MAN IS SHUTTING THE COUNTRY DOWN. THANK YOU. I WISH YOU THE BEST OF LUCK. AND AGAIN, MAYOR ISHII -- THANK YOU AND HAVE A GOOD NIGHT.

>> CITY CLERK: AND THAT WAS OUR LAST SPEAKER ON THE CONSENT CALENDAR.

>> MAYOR A. ISHII: OKAY. VERY GOOD. I NEED TO DO A REPORT OUT FROM THE CLOSED SESSION. THE CITY COUNCIL DIRECTED THE CITY ATTORNEY -- THE PARTICULAR SHALL BE DISCLOSED TO ANY PERSON UPON INQUIRY UNLESS TO DO SO WOULD JEOPARDIZE THE CITY'S ABILITY TO EFFECTUATE SERVICE OF PROCESS ON ONE OR MORE UNSERVED PARTIES OR JEOPARDIZE THE CITY'S ABILITY TO -- NEGOTIATIONS TO ITS ADVANTAGE. THANK YOU. IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

>> I SO MOVE.

>> MAYOR A. ISHII: OKAY. ANY OPPOSITION? OKAY. CONSENT CALENDAR PROCESSED. THANK YOU VERY MUCH. OKAY. IT IS 7:06. I WOULD LIKE TO MOVE ON TO THE ACTION CALENDAR INTAKE ITEM 16 AND TAKE A BRIEF BREAK AND THEN TAKE ITEM -- AND HERE YOU ARE. THANK YOU VERY MUCH. WE ARE GOING TO MOVE ON TO ITEM 16, CHANGES TO THE PLANNING AND DEVELOPMENT FEE SCHEDULE. AND WE HAVE JUST A BRIEF PRESENTATION.

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>> AMY PEARSON: THANK YOU, COUNCIL. I'M AMY PEARSON HERE WITH JIM BONDI FROM THE DIRECTORS OFFICE. HE'S GOING TO GIVE A BRIEF PRESENTATION -- BRIEF SUMMARY OF WHAT WE ARE RECOMMENDING AND THEN WE ARE HERE TO ANSWER QUESTIONS.

>> JIM BONDE: THANK YOU, META-MAYOR, AND COUNCIL. ITEM BEFORE YOU EFFECTUATE A FEE STRUCTURE FOR PROJECTS WE THINK WILL BE COMING IN STARTING NOVEMBER 1 UNDER THE NEW MIDDLE HOUSING REGULATIONS HE RECENTLY ADOPTED. IS ALSO A HANDFUL OF COST NEUTRAL CORRECTIONS MINGLED IN THERE. THE PROJECTS, WHICH COME IN AFTER NOVEMBER 1, FORMERLY WOULD REQUIRE A DISCRETIONARY VOTING PROCESS WILL NOW BE ABLE TO BE APPROVED MINISTER REALLY AND WE ARE PROPOSING A ZONING CERTIFICATE FOR MIDDLE HOUSING WITH A FEE OF $200,000, WHICH IS THE EQUIVALENT OF EIGHT HOURS OF STAFF TIME FOR THE REVIEW OF THE ZONING OF THESE PROJECTS. OUR ANALYSIS LOOKS LIKE THE ON BALANCE FEES WILL BE ABOUT 50-75% LESS EXPENSIVE FOR APPLICANTS THAN TO PROPOSE THE PROJECTS UNDER THE PREVIOUS RULES. IS ALSO A $500 NEIGHBORHOOD NOTICING FEE THE SAME WAY WE DO WITH A.D.U. PRODUCTS. HAPPY TO ELABORATE OR ANSWER ANY QUESTIONS YOU HAVE.

>> MAYOR A. ISHII: THANK YOU. I HAVE A QUESTION HERE FROM COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES. THANK YOU VERY MUCH AND THANK YOU FOR THIS ITEM. I THINK IT'S GREAT NEWS THAT BECAUSE WE WILL HAVE

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THIS BY RIGHT STREAMLINED PROGRAM WE CAN LOWER THE PERMIT FEES. I WAS WONDERING, YOU SAID IT WAS 2000-APPROXIMATELY 8000 HOURS OF WORK. IF IT'S LESS WORK OR MORE WORK, DO YOU CHANGE THE FEE LEVEL? MEANING IS IT BY THE HOUR OF THE STAFF PERSON OR IS IT JUST THIS FLAT AMOUNT?

>> JIM BONDE: IT'S A FLAT AMOUNT EXCEPT FOR PROJECTS THAT ARE EXCEPTIONALLY COMP LOCATED, IN WHICH WE HAVE THE RIGHT TO INVOICE THE APPLICANT FOR ADDITIONAL HOURS IT MAY REQUIRE. IT'S HARD TO KNOW WHAT THE STAFF TIME IS GOING TO LOOK LIKE. WE ARE GOING TO LOOK AT IT AFTER A YEAR WITH PROJECTS UNDER OUR BELT AND COME BACK TO CANCEL IF WE NEED TO MAKE REVISIONS OF THOSE FEES. THESE PROJECTS ARE A LOT MORE COMP LOCATED THAN THESE NEIGHBORHOODS ARE USED TO SEEING BEING APPROVED MINISTER REALLY. IT IS GOING TO TAKE TIME FOR STAFF TO SUSS OUT THE DETAILS OF THE PROJECTS, MAKE SURE THEY CONFORM TO THE OBJECTIVE STANDARDS. WE THINK EIGHT HOURS IS FAIR.

>> R. KESARWANI: THANK YOU VERY MUCH.

>> MAYOR A. ISHII: ANY OTHER QUESTIONS FROM MY COLLEAGUES? OKAY. I WILL TAKE PUBLIC COMMENT ON THIS ITEM. ANY PUBLIC COMMENT? NO HANDS RAISED ON ZOOM? VERY GOOD. ARE THERE COUNCIL COMMENTS? IT LOOKS LIKE COUNCILMEMBER TREGUB.

>> I. TREGUB: I WOULD LIKE TO MOVE THE STAFF RECOMMENDATION.

>> CITY CLERK: MAY I GET A MOTION TO CLOSE THE PUBLIC HEARING?

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>> I. TREGUB: MOTION TO CLOSE THE PUBLIC HEARING.

>> SECOND.

>> MAYOR A. ISHII: IS THERE ANY OPPOSITION TO CLOSING THE PUBLIC HEARING? OKAY, WE CLOSE THE PUBLIC HEARING.

>> I. TREGUB: MOTION TO APPROVE STAFF RECOMMENDATION.

>> SECOND.

>> MAYOR A. ISHII: OKAY. ANY OTHER COMMENTS FOR WE CLOSE? OKAY. IS THERE ANY OPPOSITION TO THIS? VERY GOOD. THEN MOTION PASSES. THANK YOU BOTH VERY MUCH FOR COMING THIS EVENING AND BEING HERE TO PRESENT. OKAY. SORRY. I'M GOING TO ASK OUR OFFICE OF DIRECTOR POLICE ACCOUNTABILITY GO AHEAD AND START SETTING UP AND WE ARE GOING TO TAKE A 10 MINUTE BREAK AND WE WILL TAKE ITEM 17 AND 18 ON OUR ACTION CALENDAR. THANK YOU.

>> RECORDING STOPPED. [10 MINUTE BREAK]

>> THAT IS A FEATURE THAT ALLOWS THE CITY MANAGER TO CREATE OR PRODUCE A COMPANION REPORT WHEN A BOARD OR COMMISSION SUBMITS A REPORT TO COUNCIL, AND THAT COMPANION REPORT COULD PROVIDE ADDITIONAL INFORMATION OR IT COULD CONFLICT OR IT COULD BE IN AGREEMENT WITH WHATEVER THE BOARD AND COMMISSION. THING THAT I HAVE A DUAL ROLE AS THE SECRETARY OF THE P.A.B., WE UTILIZED THAT FEATURE ON THE DOWNTOWN -- THIS WAS PRESENTED TO COUNCIL THROUGH THEIR COMPANION REPORT LAST YEAR. THEY HAVE GONE THROUGH THE PUBLIC SAFETY COMMITTEE PROCESS AND ALSO THROUGH THE FULL

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COUNCIL SUBMISSION PROCESS. THE REASON WE ARE BRINGING IT BACK IS BECAUSE IN THESE DELIBERATIONS THEY DIDN'T RECEIVE ANY SPECIFIC ATTENTION OR UP AND DOWN VOTE ON THESE AND WE BELIEVE THESE ARE OUTSTANDING MATTERS THAT DESERVE ATTENTION TO. TO BRING IT BEFORE YOU, WE ALSO UTILIZE ANOTHER FEATURE IN THE COUNCIL PROCEDURES, WHICH IS A FEATURE I CALLED THE BYPASS FEATURE. I DON'T KNOW IF THAT'S A PROPER NAME, BUT ESSENTIALLY IT'S AN OPPORTUNITY FOR A CHARTER OFFICER TO BRING OR REQUEST THAT THE FULL COUNCIL REVIEW AND AGENDA ITEM NOTWITHSTANDING THE RULES AND AGENDA COMMITTEE. SO WHEN I DID PRESENT THE RULES TO THE AGENDA COMMITTEE, THERE WAS A REQUEST TO SEND IT TO COMMITTEE. THE REASON I DIDN'T BELIEVE THAT WAS APPROPRIATE IS BECAUSE WE HAVE HAD THIS ISSUE LINGERING FOR A WHILE AND I THOUGHT IT WAS READY FOR AN UP AND DOWN VOTE FROM THE FULL COUNCIL. THERE WAS ALSO A CONCERN THAT THE P.A.B. HAD NOT TAKEN ACTION ON THESE ITEMS. THESE ITEMS, AGAIN, PART OF A COMPANION REPORT THAT WAS PRESENTED TO THE P.A.D. UNDER THE CURRENT CITY MANAGER STRUCTURE UNDER THE BOERS AND COMMISSION PROCESS. THE ONLY MECHANISM I'M AWARE OF WHERE A BOARD AND COMMISSION DIDN'T HAVE TO RESPOND BACK TO THE CITY MANAGER'S OR THE SECRETARY'S PROCEDURE, BUT WE DID BRING THESE COMPANION REPORT RECOMMENDATIONS TO THE P.A.B., SO I JUST WANTED TO MAKE SURE THAT'S ACKNOWLEDGED. ONE LITTLE CONCERN, TOO, IS THAT THE

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REPORTS WERE NOT INCLUDED IN THE AGENDA MEETING PACKET. WE DID SUBMIT THEM THROUGH THE PROCESS. WE DON'T CONTROL THAT PROCESS. WE GIVE THAT RECORD TO THE CLERK AND THE CLERK PROVIDES THAT PACKET --

>> MAYOR A. ISHII: SORRY, YOU WANT TO INCLUDE ALL THE -- I JUST WANT TO MAKE SURE YOU HAVE TIME TO PRESENT THE ITEMS THEMSELVES. I KNOW YOU'RE TRYING TO GIVE SOME BACKGROUND HERE, BUT I WANT TO BE CONSCIOUS OF THE FACT I KNOW YOU HAD A CERTAIN AMOUNT OF TIME YOU ARE PLANNING TO PRESENT FOR.

>> YEAH, AND I'M FINE WITH THAT. I WILL BE BRIEF. I JUST WANT TO MAKE SURE WE ARE ON THE SAME PAGE WITH THE PROCESS I HAVE GOT ON THE TABLE HERE. I WILL START WITH 17. IF YOU COULD PLEASE ADVANCE TO THE NEXT SLIDE, AND THAT'S A RESOLUTION CALLING ON THE LEGISLATOR TO AMEND GOVERNMENT CODE 12519. SO THAT IS A GOVERNMENT CODE THAT ALLOWS THE ATTORNEY GENERAL TO PROVIDE FORMAL OPINIONS TO SPECIALIZED OR SPECIFIC OFFICES AROUND THE STATE. SPECIFICALLY, CIVILIAN OVERSIGHT AGENCIES ARE NOT INCLUDED. WE DO BELIEVE THEY ARE PART OF THE ECOSYSTEM OF PUBLIC SAFETY AND WEEK QUITE FRANKLY BELIEVE MIGHT HAVE BEEN AN OVERSIGHT IN TERMS OF INTENT TO NOT INCLUDE CIVILIAN OVERSIGHT. I HAVE TRIED TO REACH OUT AND ALL COMMUNICATION WITH OTHER ENTITIES. WE DID REQUEST IN SOME INSTANCES OPINIONS, BUT THEY HAVE INFORMED US BECAUSE WE ARE NOT ONE OF THE NAMED ENTITIES

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THAT THERE'S NO RESPONSIBILITY ON THEIR END TO PROVIDE US ANY SUPPORT. SO IF YOU COULD ADVANCE TO THE NEXT SLIDE, PLEASE. THESE AGAIN, THESE MATTERS WERE BROUGHT FORTH. THE CASE STUDY WHERE WE SAW THE GAP DOWNTOWN POLICY -- WE SAW THAT THERE WAS A NEED TO GET SOME LEGAL INTERPRETATIONS ON SOME MATTERS THAT MAY NOT BE CLEAR AND ITEMS THAT WE HAVE ACCESS TO OUR CITY ATTORNEY'S OFFICE. THIS PARTICULAR FEATURE THAT IS PROVIDED BY THE STATE I THINK IS UNPARALLELED AND I THINK IT COULD BE NOT ONLY A GOOD FUTURE FOR US IN BERKELEY, BUT ALL CIVILIAN OVERSIGHT ACROSS THE STATE. I THINK IT COULD BE SETTING THE STAGE FOR BETTER POLICE ACCOUNTABILITY AROUND THE STATE. IF YOU COULD PLEASE ADVANCE TO THE NEXT SLIDE. AND AGAIN, THE CURRENT LAW, 12519, IT LIMITS WHO CAN RECEIVE THESE OPINIONS. SO IT'S LEGISLATORS, CONSTITUTIONAL OFFICERS, DH SHERIFF, CITY ATTORNEYS WHO HAVE CIVIC DUTIES. BUT IT DOESN'T NAME OVERSIGHT DIRECTORS OR CIVILIAN OVERSIGHT DIRECTORS. NEXT SLIDE, PLEASE. SO IN THAT PARTICULAR POLICY REVIEW, THERE WERE SOME BARRIERS TO OBTAIN THIS CRITICAL INFORMATION AND IT WAS A DIFFERENCE OF OPINION ON LAW AND HOW IT WAS BEING INTERPRETED. WE BELIEVE THAT THE ATTORNEY GENERAL WOULD BE ABLE TO PROVIDE LEGAL CLARITY ON THESE CONTESTED ISSUES. THEIR OFFICES HAS A LOT OF WEIGHT IN TERMS OF HOW THESE ISSUES ARE INTERPRETED. NEXT SLIDE, PLEASE. AND I THINK PROVIDING MORE LEGAL CLARITY IS GOING TO IMPROVE PUBLIC

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CONFIDENCE AND TRUST. SOMETIMES IT IS A MESSAGING ISSUE FOR US TO TRY TO TELL COMMUNITY MEMBERS WHY WE COULD OR COULD NOT DO THINGS AND THE COMPLEXITIES OF THE LAW WHETHER IT BE OTHER GOVERNMENT CODE SECTIONS AND WHY WE WERE ABLE TO TAKE ACTION OR NOT TAKE ACTION. NEXT SLIDE, PLEASE. ALSO, WE JUST HIGHLIGHTING THE RESOLUTION THAT THERE IS A GOOD INCH REPORT FOR US. OUR FORMER MAYOR AND NOW SENATOR, JESSE ARREGUIN, IS THE CHAIR OF THE SENATE PUBLIC SAFETY COMMITTEE. I HAVE NOT HAD ANY CONVERSATIONS SINCE HE LEFT HERE, BUT I WOULD LIKE TO THINK THIS IS SOMETHING THAT COULD POTENTIALLY GET SUPPORT. WE HAVE THAT NEXUS THERE. NEXT SLIDE, PLEASE. I DON'T IDENTIFY ANY FISCAL IMPACTS TO THIS. I WILL LET COUNCIL BE THE BODY THAT ASSESSES WHETHER THAT'S ACCURATE OR NOT. NEXT SLIDE, PLEASE. SO THE RESOLUTION IS INCLUDED IN THE PACKET AND IS TO ESSENTIALLY AMEND THE GOVERNMENT CODE TO INCLUDE CIVILIAN OVERSIGHT HAD. WE ARE CALLING ON THE STATE LEGISLATOR TO AMEND THAT CALL. NEXT SLIDE, FINAL SLIDE ON THIS. SO IN ORDER FOR US TO BE EFFECTIVE, ONE OF THE PRINCIPLES THAT WE ECHO IN THE FIELD AND THE NATIONAL ASSOCIATION OF OVERSIGHT IN LAW ENFORCEMENT, WE NEED TO HAVE TEETH TO BE EFFECTIVE. WE DO NEED LEGAL CLARITY. WE DO HAVE LEGAL ISSUES THAT GET CONTESTED AND ALL ARE CONTESTED ALL THE TIME. OTHER CIVILIAN OVERSIGHT AGENCIES AROUND THE STATE FACE THESE ISSUES. I THINK WE CAN ALL BENEFIT AS A COMMUNITY. IN

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SHORT, WE HAVE A ROBUST PUBLIC SAFETY AND ACCOUNTABILITY. DO I, MADAME MAYOR, DO I CONTINUE TO THE NEXT PRESENTATION OR DO YOU WANT TO TAKE IT?

>> MAYOR A. ISHII: LET'S ACTUALLY TAKE SOME QUESTIONS FROM THIS FIRST. ARE THERE QUESTIONS FROM MY COLLEAGUES?

>> YEAH.

>> MAYOR A. ISHII: OKAY. FROM COUNCILMEMBER TAPLIN FIRST.

>> T. TAPLIN: THANKS. SO YOU WOULD NOT BEEN IN TOUCH WITH THE SENATOR'S OFFICE, IS THAT CORRECT?

>> CORRECT.

>> T. TAPLIN: OKAY. THANK YOU. I WAS WONDERING IF I MAY ASK A QUESTION OF THE CITY ATTORNEY BECAUSE I'M TRYING TO BETTER UNDERSTAND THE RESPECTIVE ROLES OF THE CITY ATTORNEY AND ATTORNEY GENERAL WITH RESPECT TO PERSONNEL INVESTIGATIONS.

>> ABSOLUTELY. THE ATTORNEY GENERAL DOES NOT HAVE THAT TYPE OF CAPACITY TO GIVE LEGAL OPINIONS ON PERSONNEL ISSUES. OUR OFFICE WORKS WITH BOTH THE HR DEPARTMENT AND VARIOUS OTHER PARTIES TO PROVIDE ADVICE, AND ADVICE TO O.D.P.A. AND P.A.B. FALLS UNDER OUR PORTFOLIO UNDER THE CHARTER, SO WE ARE SPECIFICALLY DESIGNATED AS THE LEGAL ADVISORS TO THE P.A.B. AND TO O.D.P.A..

>> T. TAPLIN: THANK YOU. THOSE ARE MY QUESTIONS.

>> MAYOR A. ISHII: THANK YOU. YES, COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU. FOLLOWING THE VICE MAYOR. IT'S VERY

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INTERESTING. I WAS WONDERING ARE THERE ANY NOTES OR, LIKE, LEGISLATIVE NOTES IN THE DRAFTING PROCESS OR DELIVERING PROCESS AS TO, YOU KNOW, WHY THEY DIDN'T INCLUDE OFFICES LIKE YOURS IN THE DRAFTING?

>> I DON'T HAVE THAT ANSWER FOR YOU. I DON'T HAVE THE LEGISLATIVE HISTORY AND INTENT THERE. VERY FEW PLACES IN THE GOVERNMENT CODE THAT REFERENCE CIVILIAN OVERSIGHT. IT MIGHT BE IT'S STILL DEVELOPING WITHIN THE CODE.

>> B. BARTLETT: IT WOULD BE INTERESTING TO HEAR WHAT THEY WERE THINKING, YOU KNOW. YOU COULD REACH OUT TO THEM PROBABLY.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS, MADAME MAYOR. THANKS, DIRECTOR, FOR BEING HERE. IN ITEM 11 JUST IN THE TITLE RESOLUTION, I NOTICED YOU ARE REQUESTING ASSISTANCE FROM THE AG. WHAT DO YOU HAVE IN MIND THERE? WHAT'S THAT LOOK LIKE?

>> IN HINDSIGHT, THAT PROBABLY WAS A MISNOMER OR NOT QUITE COMMUNICATING WHAT I THOUGHT IT WOULD BE COMMUNICATING. IN TERMS OF INVESTIGATIVE SUPPORT, AGAIN, THERE ARE AREAS WHERE WE REACH -- WE HAVE DIFFERENCES OF OPINION ON WHAT CAN LEGALLY BE DONE, WHAT'S ACCESSIBLE, AND SOMETIMES THEY HAVEN'T BEEN CONTESTED IN CORE PROPER. AGAIN, TAP INTO OUR CITY ATTORNEY'S OFFICE, BUT THE ATTORNEY GENERAL IS UNIQUELY POSITIONED. THIS IS WITHIN THEIR WHEELHOUSE DEALING WITH THESE MATTERS. ANOTHER POINT OF THEIR

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PROCESS IS TRANSPARENCY. THEY PUT THEIR LEGAL OPINIONS ON THEIR WEBSITE. WE HAVE ACCESS TO THAT. TO GIVE YOU AN EXAMPLE OF WHAT INVESTIGATIVE ASSISTANCE CAN LOOK LIKE, ONE OF THE OPINIONS OF 80-107, WAS ASKED IS THE PUBLIC SAFETY OFFICER BILL OF RIGHTS APPLICABLE TO POLICE CHIEFS? THAT WAS PRESENTED TO THE ATTORNEY GENERAL AND THEY PROVIDED AN OPINION AND NOW WE ALL HAVE ACCESS TO THAT INTERPRETATION. THAT IS THE SORT OF LEGAL ASSISTANCE OR INVESTIGATIVE ASSISTANCE THAT WILL ALLOW US TO MOVE FORWARD.

>> B. BLACKABY: YEAH, BECAUSE I JUST NOTICED THEY CAN PROVIDE OPINIONS OF QUESTION ON LAW, BUT BASICALLY THEY CANNOT PROVIDE ANY RESOLUTION OF A FACTUAL DISPUTE. ANYWAYS, THAT PIECE OF IT FELT LIKE WAS NOT RELEVANT UNDER 12509. THAT WAS ONE THING I NOTED IN THE PROCESS. OTHER PIECES OF THIS. I NOTED IN TERMS OF THE OFFICERS THAT ARE ALLOWED TO BRING OPINIONS UNDER 12519 BEING EXPLICITLY INCLUDED CONSTITUTIONAL OFFICERS LIKE THE GOVERNOR AND LIEUTENANT GOVERNOR, THEY INCLUDE THE LEGISLATOR, BUT YOU KNOW, LOCAL BODIES ARE EXCLUDED. SO LIKE, BERKELEY CITY COUNCIL CANNOT ASK AN OPINION OF THE AG. THE ALAMEDA COUNTY BOARD OF COUNTY SUPERVISORS CANNOT ASK AN OPINION ON THIS. I GUESS WHAT I'M WRESTLING WITH IS IT SEEMS THEY ARE PRETTY CLEAR ABOUT STATE BODIES VERSUS LOCAL BODIES. THEY CERTAINLY DID GET PROSECUTING ATTORNEYS AND -- ATTORNEYS AT THE LOCAL LEVEL. IT FELT LIKE THEY WERE VERY CLEAR IN TERMS OF THE INTENT THEY WERE

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TRYING TO LIMIT IT TO CERTAIN GROUPS AND NOT OTHERS BECAUSE ME, FOR EXAMPLE, WERE EXPLICITLY EXCLUDED. DOES IT FEEL APPROPRIATE FOR BERKELEY'S POLICE ACCOUNTABILITY BOARD TO HAVE THIS ABILITY, BUT THE CITY COUNCIL OR, FOR EXAMPLE, THE COUNTY BOARD OF SUPERVISORS DOESN'T?

>> I WILL SAY NOTE ATTORNEY GENERAL SHALL GIVE THE ATTORNEY GENERAL - MIGHT NOW OUR CITY CHARTER DOES HAVE REFERENCES TO VIOLATIONS. THERE COULD BE CRIMINAL NATURE MISDEMEANORS. THIS IS, AGAIN, ANOTHER CONCERN OF OURS IS SOMETIMES WE FEEL LIKE THERE MIGHT BE VIOLATIONS OF THE CHARTER THAT POTENTIALLY COULD BE CRIMINAL IN NATURE. I THINK IT DOES CONTEMPLATE, AT LEAST THE CITY ATTORNEY, BUT THE LOCAL LEVEL HAVING THAT ACCESS.

>> B. BLACKABY: AGAIN, THEY'VE BEEN PRETTY CLEAR ON THIS THEY DON'T WANT ADJUDICATE LOCAL CHARTERS OR LAWS. I KNOW THERE'S SOME QUESTION ABOUT WHETHER THE STATE LAW, YOU KNOW, HOW IT APPLIES WHEN IT MAY COME IN CONFLICT WITH THE LOCAL CHARTER. I KNOW WHEN IT COMES TO ADJUDICATING QUESTIONS ABOUT THE CHARTER, QUESTIONS ABOUT MUNICIPAL ORDINANCES, THEY ARE LIKE WE ARE NOT GOING TO DO THAT. THAT IS THE CITY ATTORNEY'S FUNCTION. ANYWAY, I THINK THERE ARE A FEW OF THOSE QUESTIONS TO ME THAT MAKE IT -- ANYWAY, IT FEELS LIKE A LESS CLEAR ASK BASED ON THE WAY THIS THING IS DESIGNED AND ALSO THE WAY THE CHARTER, THE P.A.B. DOES HAVE A WAY TO GO TO THE -- FEELS LIKE THERE IS THE PROCESS FOR

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THAT UNDER THE CHARTER AND FOR VARIETY OF REASONS, THE SORT OF AG OPINION TO ME FEELS OUT OF STEP WITH A, WHAT THE COUNCIL CAN DO ITSELF AND MAYBE WITH THE INTENT OF SECTION 12519. AGAIN, I'M NOT A LAWYER, BUT AS I'M READING THROUGH IT AND THINKING ABOUT IT CONSIDERING THE SAME THINGS AS YOU ARE. ARE THERE ANY EXAMPLES, SPECIFIC EXAMPLES OF ILLEGAL QUESTION YOU WOULD WANT TO POST THAT YOU FEEL LIKE YOU COULDN'T GET ADVICE ON THROUGH ANOTHER MECHANISM?

>> THERE ARE MANY. SOMETIMES QUESTIONS REGARDING ACCESS TO RECORDS AND THE SCOPE OF RECORDS, THERE'S DIFFERENCES OF OPINIONS THERE AND IT WOULD BE HELPFUL TO GET MORE CLARITY THERE BECAUSE TO OUR KNOWLEDGE HAVE NOT BEEN CONTESTED AND THE CITY OR THE ATTORNEY GENERAL I THINK WOULD BE A GOOD ENTITY TO PROVIDE OPINIONS ON IT.

>> B. BLACKABY: OKAY. THANKS. THANKS, MAYOR.

>> MAYOR A. ISHII: COUNCILMEMBER BARTLETT.

>> B. BARTLETT: YEAH, I DON'T HAVE ANY QUESTIONS. I HAVE SOME COMMENTS. IS THAT OKAY AT THIS POINT?

>> MAYOR A. ISHII: LET'S WAIT TO DO THAT. OTHER QUESTIONS FROM FOLKS? I'M CURIOUS TO KNOW IF YOU REACHED OUT TO THE ATTORNEY GENERAL'S OFFICE TO HAVE A CONVERSATION WITH THEM ABOUT THIS.

>> NO. WE DID NOT DO THAT; NO. I DID NOT DO THAT.

>> MAYOR A. ISHII: AND I'M ALSO CURIOUS THAT DURING THIS

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INVESTIGATION IT SEEMED THAT YOU DISAGREED WITH OUR CITY ATTORNEY'S POSITION ON A PARTICULAR MATTER. I WONDER IF YOU REACHED OUT THROUGH THE CITY ATTORNEYS OFFICE IN AN ATTEMPT TO GET SUPPORT FROM THE ATTORNEY GENERAL'S OFFICE.

>> I'M SORRY, I'M TRYING TO TRACK THE QUESTION.

>> MAYOR A. ISHII: CURRENTLY, BECAUSE OUR CITY ATTORNEY TO MY UNDERSTANDING COULD REACH OUT TO THE ATTORNEY GENERAL, HAVE YOU TRIED TO GET SUPPORT THROUGH THE ATTORNEY GENERAL'S OFFICE THERE IN THE OF THE MEANS THAT CURRENTLY EXIST?

>> AS IT RELATED TO THIS PARTICULAR POLICY REVIEW?

>> MAYOR A. ISHII: NO, JUST GENERALLY.

>> WE REACH OUT TO DIFFERENT ENTITIES TO INCLUDE ATTORNEY GENERAL. SO WE HAVE DONE THAT, YES.

>> MAYOR A. ISHII: SO YOU HAVE REACHED OUT TO THE ATTORNEY GENERAL'S OFFICE THROUGH THESE CURRENTLY EXISTING WAYS OF CONNECTING TASK FOR SUPPORT?

>> NOT ASK FOR SUPPORT. ASK FOR CLARITY. BUT AGAIN, THIS PARTICULAR TOOL THAT WOULD ALLOW FOR LEGAL OPINIONS, IT IS NOT BEING SPECIFICALLY TOLD AS ONE IS SORT OF A WAY TO SEE IF THEY WOULD ENTERTAIN A LEGAL OPINION OR PROVIDE ONE FOR US AND THEY SPECIFICALLY TOLD US WE ARE NOT ONE OF THE LISTED ENTITIES. SO.

>> MAYOR A. ISHII: I SEE. WE ARE GOING TO MOVE ON THEN TO PUBLIC COMMENT SINCE THERE ARE NO MORE QUESTIONS. IS THERE

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PUBLIC COMMENT?

>> CITY CLERK: THERE ARE NO HANDS RAISED: RESUME.

>> MAYOR A. ISHII: OKAY. WE WILL MOVE ON THE COUNCIL COMMENTS THEN. COUNCILMEMBER HUMBERT, WOULD YOU LIKE TO GO FIRST?

>> M. HUMBERT: SURE. THANKS, MADAME MAYOR. I WILL TRY TO BE BRIEF AND I WILL PROBABLY THE BLUNT. I AM VERY RELUCTANT TO SUPPORT APPROACHES THAT INCREASE POTENTIAL FOR CONFLICT WITHIN CITY GOVERNMENT. AND THE STATE ATTORNEY GENERAL. THE INCREASED STAFF TIME AND LEGAL COSTS ASSOCIATED WITH PROLIFERATING SUCH CONFLICTS SHOULD GIVE US PAUSE. THIS IS ESPECIALLY TRUE WHEN AVENUES EXIST TO BRING VARIOUS AVENUES OF INVESTIGATION TO THE ATTENTION OF THE ATTORNEY GENERAL OR STATE ATTORNEY GENERAL. I'M ALSO CONCERNED THAT THE CONTENT OF THIS ITEM IS INCONSISTENT WITH AND EVEN PERHAPS MISREPRESENTED BY ITS SUMMARY. THE RECOMMENDATION SECTION READS ADOPT A RESOLUTION CALLING ON THE CALIFORNIA STATE LEGISLATOR TO AMEND GOVERNMENT CODE SECTION 12519 TO ALLOW HEADS OF CIVILIAN OVERSIGHT AGENCIES TO DIRECTLY REQUEST INVESTIGATIVE ASSISTANCE. AS COUNCILMEMBER BLACKABY MENTIONED THE STATUTE, AND I AM A LAWYER. I READ THE STATUTE. THE STATUTE DOESN'T HAVE ANYTHING TO DO WITH INVESTIGATIVE ASSISTANCE. IS A STATUTE THAT ALLOWS CERTAIN GOVERNMENTAL, CERTAIN MEMBERS OF GOVERNMENT AND PROSECUTING ATTORNEYS AND CITY ATTORNEYS TO ASK FOR LEGAL OPINIONS. IT'S A PROCESS THAT HAS

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EXISTED UNDER CALIFORNIA LAW FOR A LONG, LONG TIME. BUT THIS IS NOT A STATUTE THAT ALREADY PROVIDES, THAT THE ATTORNEY GENERAL WILL PROVIDE INVESTIGATIVE ASSISTANCE UPON REQUEST. SO IT DOESN'T REALLY HAVE ANYTHING TO DO WITH THAT. BUT THE SUMMARY SECTION THEN LAUNCHES INTO A DISCUSSION OF A SPECIFIC O.D.P.A. COMPANION REPORT AND A SET OF SECTIONS CONTAINED IN THAT COMPANION REPORT. THEN WE HAVE RESOLUTIONS THAT ULTIMATELY TAKES NO ACTION SPECIFIC TO IT. THE COMPANION REPORT IS ALSO INCLUDED AS AN ATTACHMENT. INTENTIONAL OR NOT, THIS ALL TOGETHER CREATES A SENSE OF AMBIGUITY TO WHAT THIS ITEM IS TRYING TO ACHIEVE. OR ARE WE ASKED TO SIGN OFF ON SOME ADMISSION OR APPROVAL? ARE WE ENDORSING THE COMPANION REPORT'S RECOMMENDATIONS? THIS ALL SEEMS TO BE A REPEAT OF THE SAME CONFUSION FACED PREVIOUSLY WHEN THE D.P.A. – WHETHER IT WAS BEING PRESENTED PURELY FOR INFORMATION OR SOME SORT OF ACTION. I WANT TO SAY THESE QUESTIONS SHOULD HAVE POTENTIALLY BEEN RESOLVED HAD THE DIRECTOR OF POLICE ACCOUNTABILITY AGREED TO THE REQUEST OF THE AGENDA RULES OF ACCOUNTABILITY AS WELL AS THE RULES OF ITEM 18 GO THROUGH THE COUNCIL POLICY SUBCOMMITTEE PROCESS. INSTEAD, THE DIRECTOR CHOSE TO EXERCISE HIS PREROGATIVE, WHICH HE IS ALLOWED TO DO THAT, TO BRING THIS TO COUNCIL. I CAN'T SUPPORT THIS OR THE FOLLOWING ITEM, SO I WILL BE VOTING NO ON THE ITEM OR TO TAKE NO ACTION. THANK YOU.

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>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANKS AND THANKS SO MUCH FOR BEING HERE. I AM NOT GOING TO BE SO ELOQUENT AS MY COLLEAGUES HERE. I THINK WHAT COUNCILMEMBER BLACKABY SAID IS PRETTY CLEAR AS WELL AS COUNCILMEMBER HUMBERT. HE MADE A REQUEST TO THE AG, WHICH WAS DECLINED. THERE WERE DISAGREEMENTS WITH THE CITY ATTORNEY AROUND UNCLEAR MATTERS. BUT I UNDERSTAND THAT, BUT SOMETIMES IT IS DISAPPOINTING TO HEAR WHAT WE DON'T WANT TO HEAR. A COUPLE OF THINGS PROCESS WISE. I AM CONCERNED THAT THERE HAS NOT BEEN COMMUNICATION OR CONTACT WITH LEGISLATOR. WHAT MAKES OUR RELATIONSHIP WITH THE STATE SO USEFUL IS BEING ABLE TO LEVERAGE THE ABILITY TO REACH OUT AND WORK ON THINGS TOGETHER SO THAT WE ARE MOVING IN TANDEM. I RECOGNIZE THAT THIS RESOLUTION IS PERHAPS AN ATTEMPT TO DO THAT IN 1 PARTICULAR WAY. I DO THINK THAT THESE KINDS OF EFFORTS WILL BE MORE SUCCESSFUL IF THAT EARLY OUTREACH, THAT EARLY ENGAGEMENT WITH THE STATE LEDGE MIGHT BE ANOTHER THING TO CONSIDER MOVING FORWARD.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I HAVE A QUESTION FOR COUNCILMEMBER BLACKABY ACTUALLY AS THE CHAIR. I UNDERSTAND THAT THE -- I DON'T KNOW IF YOU FEEL COMFORTABLE ANSWERING THIS ON THE DAIS, BUT HOW WOULD YOU PERSONALLY FEEL ABOUT THIS ITEM MOVING TO YOUR COMMITTEE?

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>> B. BLACKABY: YOU KNOW, PROCEDURALLY, CERTAINLY APPROPRIATE. I THINK SOME OF THE CONCERNS HAVE BEEN RAISED. I'M NOT SURE HOW MANY OF THEM ARE SOLVABLE, BUT CERTAINLY FROM A PROCEDURAL STANDPOINT WOULD BE HAPPY AND WILLING TO HEAR IT.

>> MAYOR A. ISHII: ANY OTHER COMMENTS? OKAY. OTHER COMMENTS FROM COUNCILMEMBERS? YES?

>> IS THIS STILL ON? SO YES. IT APPEARS AS IF THIS IS A FORAY INTO LEGISLATING THAT YOU'RE TAKING. IT'S TRICKY. IT'S A TRICKY GAME THAT WE DO. WE THINK THINGS THROUGH A LOT AND WE NETWORK AND WE WORK IT OUT AND WE COMPROMISE AND WE LAND ON SOMETHING. I, FOR ONE, DON'T FEEL THAT I EVEN UNDERSTAND THIS ENOUGH TO EVEN VOTE ON THIS, BUT WHAT ARE THE APPLICATIONS, RIGHT? WHAT WERE THEY THINKING WHEN THEY WROTE THIS? CITY ATTORNEY, DOES THIS INDICATE STAFF ISSUES, LABOR UNIONS, THINGS LIKE THAT. THESE ARE ISSUES THAT WOULD BE NEEDED TO BE UNPACKED FOR ME TO DIGEST AND UNDERSTAND BEFORE VOTING ON THIS. THIS IS SOMETHING YOU WOULD WANT TO TAKE THROUGH A SUBCOMMITTEE MEETING. TRUST ME, I'VE BEEN IN OFFICE FOR NINE YEARS NOW. I GO TO THE PROCESS AND I GET TORN APART AND REASSEMBLE. IF I CAN TAKE IT, YOU CAN TAKE IT, TOO. THAT'S MY SUGGESTION ON THIS. WORK ON THIS AND FIGURE OUT EXACTLY HOW IT IS YOU WANT TO MOVE FORWARD AND HOW IT ADDRESSES THE NEEDS OF THE CITY.

>> MAYOR A. ISHII: I WOULD LIKE TO MAKE A MOTION THAT WE TAKE

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NO ACTION ON THIS ITEM.

>> SECOND.

>> MAYOR A. ISHII: SHOULD WE TAKE THE ROLL? LET'S TAKE THE ROLL.

>> CITY CLERK: ON THE MOTION, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: ABSTAIN.

>> CITY CLERK: COUNCILMEMBER TREGUB.

>> I. TREGUB: AYE.

>> MAYOR A. ISHII: THANK YOU. WOULD YOU LIKE TO PRESENT 18?

>> YES. THIS ONE AGAIN IS PART OF THE SAME PACKAGE OF RECOMMENDATIONS OUT OF THE COMPANION REPORT. THIS ONE, OUR CONCERN HERE WAS THERE WAS SOME COMMUNICATIONS MESSAGING BEING PUT OUT BY THE CITY, DIFFERENT APARTMENTS THAT CREATED CONFUSION. WE ALSO SEE THERE'S A CURRENT GAP THAT NEEDS TO, IN MY OPINION AND REVIEW, BE ADDRESSED IF WE WANT TO HAVE ACCOUNTABILITY WHILE WE ARE HAVING THESE CRITICAL POLICE REVIEWS AND INVESTIGATIONS. THE RESOLUTION HERE, IT IS INTERNAL. IT IS

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FOR COUNCIL TO DIRECT THE CITY MANAGER IN AND THE CITY ATTORNEY TO WORK TOGETHER TO CREATE A COMMUNICATIONS POLICY, DEVELOP TRAINING FOR CITY OFFICIALS AND BUILD COMPLIANCE MECHANISMS REGARDING COMMUNICATIONS DURING THE PENDENCY OF INVESTIGATIONS. NEXT SLIDE, PLEASE. OKAY. AGAIN, SAME REPORT. SPECIFICALLY, I WILL HONE IN ON SOME OF THE EARLY MESSAGING THAT WAS MADE ON THIS BECAUSE I THINK THE CONTEXT MATTERS HERE. THE CITY MANAGER AT THE TIME SENT AN EMAIL TO COUNCIL AND INDICATED THAT THE ALLEGATIONS WERE DISTURBING. BUT SAID THERE WAS NO REASON TO PAUSE THE CHIEF'S APPOINTMENT AT THE TIME. I THINK THAT, FROM MY INVESTIGATIVE PERSPECTIVE, CAN BE VERY PROBLEMATIC. IF THEY ARE DISTURBING, YOU SHOULD PAUSE IT. THOSE EMAILS BECAME PUBLIC, SO NOW WE ARE NAVIGATING AN INVESTIGATION POLICY REVIEW WITH POTENTIAL QUESTIONS ABOUT IMPARTIALITY. AND BIAS AND PREJUDGMENT ON THE FACTS. NEXT SLIDE, PLEASE. CURRENTLY, THERE IS NO FORMAL CITY POLICY THAT WE WERE ABLE TO IDENTIFY THAT SPECIFICALLY SPOKE TO THIS ISSUE. WE BELIEVE IT WAS PREMATURE OR AMBIGUOUS STATEMENTS, PREJUDICE INVESTIGATIONS, ERODED PUBLIC TRUST. NEXT SLIDE, PLEASE. A LIVE EXAMPLE OF THIS. THIS HAPPENED LAST WEEK. THE DAILY CAL RAN A STORY INDICATING WE WERE GOING TO HAVE THIS CONVERSATION. A CITY SPOKESPERSON INDICATED WE ARE NOT AWARE OF ANY FINDINGS OR WRONGDOINGS THAT CAME OUT OF THAT INVESTIGATION. WHILE THAT'S TECHNICALLY TRUE, THE CITY ALSO INDICATED THAT THE

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TEXT MESSAGES WERE AUTHENTICATED AND THOSE TEXT MESSAGES ARE PUBLIC. WE, I THINK, ALL AGREE THAT MANY OF THEM WERE EITHER RACIST OR INAPPROPRIATE OR JUST NOT DEMONSTRATING THE VALUES THAT WE HAVE HERE AS A CITY. ONE COULD SAY THEY OBJECTIVELY VIOLATE THE CITY AND POST VALUES. THERE'S A LOT OF CONFUSION THERE THAT RISK UNDERMINING TRUST WHEN WE HAVE THESE SORT OF STATEMENTS BEING PUT OUT BY THE CITY APPARATUS. NEXT SLIDE, PLEASE. THE IDEA HERE AGAIN IS TO HAVE CONSISTENCY AND PRINCIPLED COMMUNICATION. IT GIVES THE PUBLIC AN OPPORTUNITY TO HAVE AN EXPECTATION OF WHAT WILL BE SAID OR WON'T BE SAID AND IT PROTECTS THE INTEGRITY OF THE INVESTIGATIONS, FAIR TREATMENT OF INDIVIDUALS BOTH THE ACCUSED AND ACCUSERS, THE CITY'S REPUTATION FOR ACCOUNTABILITY. IN THAT REPORT -- NEXT SLIDE, PLEASE. WE DREW FROM POTENTIAL GUIDANCE IN THE STATE BAR CALIFORNIA RULE 3.6 AND ALSO THE U.S. D.O.J. STANDARDS THAT SPEAK TO AND ALSO THE SIZE THE CAUTION, NEUTRALITY, AND INTEGRITY OF THE PUBLIC FACING PROCESS OF AN INVESTIGATION. NEXT SLIDE, PLEASE. FOR FISCAL IMPACTS, THERE WILL BE STAFF TIME. WE ARE HAPPY TO PROVIDE ANY SUPPORT THAT THE TWO ENTITIES MAY NEED, ANY OPINIONS. OR ANY PARTICULAR RESEARCH OR BEST PRACTICES THAT WE CAN ASSIST IN. WE DIDN'T PARTICULARLY WRITE THAT IN IN THE RESOLUTION. WE WANTED TO RESPECT THAT THE CITY MANAGERS AND CITY PURVIEW, BUT WE ARE HAPPY TO BE A RESOURCE IF NECESSARY. NEXT

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SLIDE, PLEASE. AGAIN, TO DRAFT A COMMUNICATION POLICY THAT ADDRESSES INVESTIGATIONS OF THIS NATURE. WHAT CAN BE SAID, WHAT WILL BE SAID? DEVELOP AND IMPLEMENT TRAINING FOR CITY STAFF AND CREATE COMPLIANCE MECHANISMS WHEN THERE'S DEVIATION FROM ESTABLISHED PROTOCOLS. AND THEN HAVE COUNCIL REVIEW AND APPROVE THE SAID POLICY. AGAIN, I THINK THIS IS A GAP THAT I BELIEVE STILL EXISTS. NEXT SLIDE, PLEASE. WHICH IS WHY WE ALSO BROUGHT IT FOR COUNCIL'S CONSIDERATION TO ENSURE THAT MOVING FORWARD WE DON'T HAVE ANY OF THESE ISSUES RESURFACE. THANK YOU.

>> MAYOR A. ISHII: OKAY. COUNCILMEMBER LUNAPARRA, YOU HAVE QUESTIONS TO START WITH?

>> C. LUNAPARRA: YES. I'M CURIOUS WHY THIS IS WRITTEN AS A RESOLUTION INSTEAD OF AS A REFERRAL?

>> NO PARTICULAR REASON OTHER THAN -- THERE'S NO PARTICULAR REASON IT COULD'VE BEEN A REFERRAL. YEAH.

>> MAYOR A. ISHII: OKAY. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU VERY MUCH. I HAVE A COUPLE OF QUESTIONS. I BELIEVE I HAVE A QUESTION FOR EACH OF THE OFFICERS. WHAT DOES THE INVESTIGATION HAVE TO DO WITH THE CHIEF'S APPOINTMENT AND WHY -- UNDER A PURVIEW THAT BEING THE APPOINTING OF THE CHIEF IMPACT THE THIRD-PARTY INVESTIGATION?

>> WHAT WAS THE QUESTION?

>> T. TAPLIN: SORRY, WHAT DID THE INVESTIGATION HAVE TO DO WITH

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THE CHIEF'S APPOINTING NY WITH THE CITY MANAGER COMMUNICATIONS REGARDING A MATTER UNDER OUR PURVIEW, THAT PURVIEW BEING THE MATTER OF THE POLICE CHIEF IMPACT A THIRD PARTY INVESTIGATION?

>> OKAY. THE HISTORY THERE IS ON THE EVE OF THE CHIEF LEWIS, CURRENT CHIEF LEWIS, SHE WAS AN INTERIM CHIEF AT THE TIME. THIS ALLEGATION SURFACED ON THE EVE OF HER APPOINTMENT. THE FORMER EMPLOYEE OF THE CITY, OFFICER SHADOWDY, RAISED CONCERNS OF THE ACTIVITY OF THIS DOWNTOWN TASK FORCE AND IMPLICATED THE INTERIM CHIEF AT THE TIME.

>> T. TAPLIN: IN WHAT WAY WAS SHE IMPLICATED? I RECEIVED THOSE EMAILS.

>> THAT SHE HAD KNOWLEDGE OF THESE ILLEGAL PRACTICES OF THIS DOWNTOWN TASK FORCE ACTIVITIES AND THAT SHE DIDN'T DO ANYTHING.

>> T. TAPLIN: SHE WAS AT THE TIME NOT INTERIM CHIEF? SHE WAS THE CAPTAIN OF HER DIVISION.

>> AT WHICH TIME OF HER?

>> T. TAPLIN: AT THE TIME OF THE ALLEGED MISCONDUCT.

>> THE ALLEGED MISCONDUCT BY THE OFFICERS, OR?

>> T. TAPLIN: THE OFFICERS TASK FORCE TEAM.

>> THAT'S CORRECT. BUT I THINK THE EMAILS BY THE FORMER OFFICERS WERE SAYING SHE IS DISQUALIFIED TO BE PERMANENT CHIEF BECAUSE SHE HAD PRIOR KNOWLEDGE OF THESE ACTIONS BY THE DOWNTOWN TASK FORCE AND DID NOTHING ABOUT IT.

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>> T. TAPLIN: IT SOUNDS LIKE THE FORMER OFFICER HAD AN OPINION THAT DID NOT SHARE. I'M ASKING HOW THAT WOULD IMPLICATE THE THIRD PARTY.

>> I THINK THE POINT I WAS TRYING TO ILLUSTRATE THERE WAS AN ACTIVE ALLEGATION AND CONCERN OF WRONGDOING, NOT ONLY BY THIS UNIT BUT ALSO BY THE PERSON WE WERE GOING TO NAME AS CHIEF. WHEN THE COMMUNICATIONS BY THE CITY MANAGER WERE SAYING THE ALLEGATIONS WERE RESURFACE BUT WE WILL INVESTIGATE THIS BUT GO AHEAD AND APPOINT ANYWAY. THERE SEEMS TO BE INCONSISTENCY IN TERMS OF THE INTEGRITY OF THE INVESTIGATION. IF YOU ARE GOING TO INVESTIGATE YOU SHOULDN'T TELL SOMEBODY GO AHEAD AND APPOINT THIS PERSON IF WE ARE TAKING THESE ALLEGATIONS AGAINST THEM SERIOUSLY.

>> T. TAPLIN: WAS THE CHIEF BEING INVESTIGATED?

>> AT THE TIME THAT'S WHAT THE CITY MANAGER INDICATED, THAT THEY WOULD LOOK INTO ALL THE ALLEGATIONS BROUGHT FORTH IN THE EMAILS BY THE FORMER OFFICER.

>> T. TAPLIN: DAILY CAL WAS FROM THIS TIME THIS YEAR?

>> YES, SIR

>> T. TAPLIN: WAS THERE A LIVE INVESTIGATION AT THE TIME OF THE DAILY CAL?

>> NOT TO MY KNOWLEDGE.

>> T. TAPLIN: THANK YOU, MY NEXT QUESTION IS FOR THE CITY

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ATTORNEY OR CITY MANAGER, IS THERE NO PROTOCOLS OR MECHANISMS OR STATE LAWS WHICH WE MUST COMPLY RESPECTING PERSONNEL INVESTIGATIONS?

>> CITY MANAGER BUDDENHAGEN: WE DO.

>> T. TAPLIN: COULD YOU ELABORATE?

>> CITY MANAGER BUDDENHAGEN: THERE'S PERSONAL RULES, THERE'S STATE LAW, THERE'S THE IMPARTIALITY GUIDELINES THAT THE CITY HAS. THERE ARE A LOT OF GUARDRAILS THAT ARE PUT IN PLACE TO PROTECT THE INTEGRITY OF AN INVESTIGATION WHEN IT'S HAPPENING AND TO PROTECT THE PERSON IS PRESUMED INNOCENT WHILE GOING THROUGH THIS INVESTIGATION AND NOT SOMETHING THAT IS COMMENTED ON.

>> I WANTED TO CONFIRM WHAT PAUL SAID IS ENSHRINED IN CASE LAW AND DUE PROCESS DOCTRINES THAT MANDATE THE CITY, DURING THE COURSE OF A PERSONNEL INVESTIGATION IT'S TAKEN VERY SERIOUSLY AND THERE ARE GUARDRAILS TO MAKE SURE THERE'S NO PREJUDGING. BACK TO THE ISSUE OF THE INVESTIGATION THAT HAPPENED, RELATED TO THE TEXTING ISSUE, A THIRD PARTY, A COMPLETELY NEUTRAL THIRD PARTY INVESTIGATOR WAS BROUGHT ON BY MY OFFICE SEPARATELY FROM THE CITY MANAGER'S OFFICE BECAUSE THE IDEA WAS THAT THE CITY MANAGER IS IN THE CHAIN OF COMMAND. SO WE REMOVED HER FROM THAT, BROUGHT IN AN INDEPENDENT INVESTIGATOR. ONE OF THE MAIN INVESTIGATORS WAS ACTUALLY A FORMER FEDERAL PROSECUTOR THAT THE

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PAB MEMBERS, THE THEN CHAIR OF THE PAB HAD RECOMMENDED. IT WAS A CLEAN THOUGHTFUL PROCESS.

>> T. TAPLIN: THANK YOU. I HAVE MY ONE FINAL QUESTION. THANK FOR YOUR PATIENCE. IS THERE ANYTHING PREVENTING THE THREE CHARTER OFFICERS FROM COMMUNICATING TO CLARIFY THESE THINGS, TO REVIEW THESE THINGS TOGETHER? WHY WOULD COUNCIL NEED TO GIVE DIRECTION TO THE CITY MANAGER FOR THIS TO OCCUR?

>> CITY MANAGER BUDDENHAGEN: NO, THERE'S NOTHING PRECLUDING US FROM TALKING ABOUT THESE THINGS.

>> T. TAPLIN: THANK YOU VERY MUCH.

>> HAPPY TO. WE ARE HAPPY AND OPEN TO TALK ABOUT ISSUES.

>> T. TAPLIN: SO IT'S POSSIBLE, YOU ARE OPEN TO IT, AND ARE YOU HAPPY TO. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. I HAVE THREE QUESTIONS. TWO OF THEM FOR THE DIRECTOR, THANK YOU FOR YOUR PRESENTATION. DID THE PAB, AS A BODY, WEIGH IN ON THIS INVESTIGATION BEFORE BEING BROUGHT HERE TONIGHT.

>> NOT WEIGHED IN BUT IT WAS PRESENTED TO THEM. SO THEY WERE GIVEN THIS RESOLUTION AND WERE GIVEN THE OPPORTUNITY TO SEND ANY MATERIALS AND OR TO MAKE A VOTE ONE WAY OR THE OTHER. THEY TOOK NO ACTION.

>> I. TREGUB: THEY TOOK NO ACTION. OKAY. THANK YOU. WAS THERE AN

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EFFORT TO DISCUSS THIS ITEM WITH STAFF BEFORE IT BEING BROUGHT TO THE COUNCIL?

>> TO WHICH STAFF? THE CITY MANAGER, CITY ATTORNEY?

>> I. TREGUB: YES.

>> WE DID HAVE A CONVERSATION WITH THE CITY ATTORNEY BEFORE IT WENT TO RULES AND AGENDA. AND WE FELT IT COULD STILL BENEFIT FROM GOING THROUGH THAT PROCESS.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: CAN I ASK A FOLLOW-UP QUESTION TO THAT?

>> I. TREGUB: OF COURSE.

>> MAYOR ISHII: I'M CURIOUS. WHAT DID THAT CONVERSATION INVOLVE?

>> THE CITY ATTORNEY'S OFFICE WANTED TO GET MORE UNDERSTANDING OF WHAT THE SORT OF END OUTCOME WAS HERE. AND WE HAD A CONVERSATION ALSO OF WHAT THE VARIOUS BODIES OF LAW THAT THEY INDICATED THAT SORT OF PLAY INTO THESE THINGS. AND ALSO WHAT IT LOOKS LIKE IN TERMS OF LITIGATION CONTEXT, VERSUS THE ADMINISTRATIVE, INVESTIGATIVE CONTEXT THAT WE DEAL WITH. AND THEN WE TALKED ABOUT THE POSSIBILITY, ARE THERE ANY OTHER AVENUES THAT CAN BE EXPLORED, IN LIEU OF COUNCIL GIVING THIS SORT OF DIRECTIVE.

>> MAYOR ISHII: OKAY, THANK YOU. APOLOGIES. GO AHEAD, COUNCILMEMBER.

>> I. TREGUB: NO, THAT WAS HELPFUL. THANK YOU. I HAVE ONE

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QUESTION FOR THE CITY MANAGER. IT SAYS UNDER FISCAL IMPACTS THAT IT WILL PRIMARILY REQUIRE STAFF TIME WITHIN THE CITY MANAGER'S OFFICE. THE CITY ATTORNEY'S OFFICE AND ODPA. SO ACTUALLY THIS IS A QUESTION FOR BOTH THE CITY MANAGER AND THE CITY ATTORNEY. IN ANY DISCUSSIONS, TO THE EXTENT THIS WAS DISCUSSED, WAS THERE A DISCUSSION OF STAFF TIME AND BUDGETARY IMPLICATIONS? IF WE WERE TO MOVE FORWARD WITH THIS TONIGHT?

>> CITY MANAGER BUDDENHAGEN: COUNCILMEMBER, IT WASN'T DISCUSSED WITH ME.

>> FARIMAH BROWN: AND THE BUDGET ISSUES AND IMPLICATIONS, WE DID NOT DISCUSS THAT OR TAKE IT INTO ACCOUNT.

>> I. TREGUB: THANK YOU. NO FURTHER QUESTIONS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU. JUST A FEW QUESTIONS ON KIND OF TIMELINE AND PROCESS OF 2022. I WILL JUST NOTE, I DID SERVE ON THE PAB. THIS PARTICULAR INCIDENT WAS BEFORE MY SERVICE. THE REPORT WAS PUBLISHED WHILE I WAS STILL ON THE PAB. I HAD SOME OVERLAP AT THE END BUT CERTAINLY NOT AT THE BEGINNING. SO ONE QUESTION IS AROUND KIND OF THE COMMUNICATION FROM THE CITY MANAGER. BECAUSE I AGREE, LIKE THERE SHOULD BE NO APPEARANCE OF PUTTING THUMBS ON THE SCALE OR PRE-JUDGING INVESTIGATION. THAT'S WHY WHAT THE CITY ATTORNEY MENTIONED HAVING A THIRD PARTY INVESTIGATION WAS REALLY IMPORTANT AND APPROPRIATE. BECAUSE IT'S

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OUTSIDE OF THE CHAIN OF COMMAND, THERE'S SOMEONE ELSE LOOKING AT FACT BASIS AND COMING BACK WITH RECOMMENDATIONS. BUT SHE DID NOT MAKE A PUBLIC STATEMENT AT THAT POINT, RIGHT? THAT WAS A COMMUNICATION TO COUNCIL, INTERNAL.

>> THE EMAIL?

>> B. BLACKABY: YEAH.

>> EVEN THE EMAIL ACKNOWLEDGED THIS SHOULD BECOME PUBLIC.

>> B. BLACKABY: AT THE TIME. I WAS NOT ON THE COUNCIL, I HAD CONVERSATIONS WITH COUNCILMEMBER HUMBERT, JUST TO REFRESH MYSELF OF THE TIMELINE. THIS WAS A POINT WHEN WE HAD A VACANCY IN THE POLICE CHIEF ROLLE. WE HAD SORT OF BEEN GOING THROUGH A PROCESS OF FILLING THAT ROLE. THERE WAS SOME URGENCY AT FILLING THAT POSITION. AND I THINK, YOU KNOW, SO THE COUNCIL WAS FACED WITH A CHOICE, RIGHT, DO WE MOVE FORWARD OR NOT MOVE FORWARD? THE CITY MANAGER, YOU KNOW, GAVE KIND OF HER RECOMMENDATION BASED ON WHAT SHE HAD SEEN TO DATE. BUT IT CERTAINLY DIDN'T AFFECT THE COMMENCEMENT OF THE INVESTIGATION, IT DIDN'T AFFECT THE COMPLETION OF THE INVESTIGATION. IF THE INVESTIGATION CAME BACK WITH RECOMMENDATIONS THAT SAID, HEY, THE POLICE CHIEF REALLY SCREWED UP AND WAS AWARE OF ALL OF THIS, I THINK THE CITY COUNCIL VERY LIKELY WOULD HAVE MADE A DIFFERENT DECISION DOWN THE ROAD AND WE STILL WOULD HAVE BEEN WITHIN OUR RIGHTS TO DO THAT. BUT FROM THE PRESUMPTION OF INNOCENCE PERSPECTIVE, RIGHT,

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THERE'S WERE ALLEGATIONS NOT SUBSTANTIATED. THE CITY MANAGER HAD DONE AN INITIAL LOOK, GRANTED TO YOUR POINT IN THE MEMO, SHE DIDN'T DO A FULL INVESTIGATION OF HER OWN, THERE WAS ONE DAY BETWEEN WHEN THE ALLEGATIONS WERE RECEIVED AND THIS COMMUNICATION CAME TO COUNCIL. BUT SHE HAD SOME INITIAL INQUIRIES, PRESUMPTION OF INNOCENCE ON THE CHIEF. THE SENSE THAT WE NEEDED TO HIRE A POLICE CHIEF. PROBABLY SOME QUESTION AS TO WHETHER THE INTERIM CHIEF HAD STUCK AROUND IF WE HAD LEFT HER HANGING OUT THERE LIKE THIS FOR A WHILE. THERE ARE A LOT OF FACTORS AT PLAY HERE. I THINK THE APPROPRIATENESS OF HAVING A THIRD PARTY DOING THE INVESTIGATION, REACHING A CONCLUSION ON THE INVESTIGATION, COMING BACK TO THE COUNCIL AND THE COUNCIL STILL HAVING THE ABILITY TO MAKE A COMPLETION AT THE CONCLUSION OF THAT INVESTIGATION DOES FEEL APPROPRIATE. IT ALSO DOESN'T FEEL LIKE WE WERE PRE-JUDGING THE RESULTS OF IT BECAUSE THE WHOLE INVESTIGATION WAS ALLOWED TO PROCEED. I'M TRYING TO REMEMBER, DID THE PAB IN TERMS OF ITS REPORT MAKE ANY DETERMINATION IN TERMS OF THE CHIEF'S INVOLVEMENT, AWARENESS WHILE SHE WAS A CAPTAIN AT THE END OF THIS? WHAT WAS THE PAB'S PERSPECTIVE ON THAT QUESTION.

>> THAT WASN'T THE SCOPE OF THE POLICY REVIEW. THAT WOULD HAVE BEEN MORE APPROPRIATE FOR A PERSONNEL INVESTIGATION.

>> B. BLACKABY: OKAY. SO, YOU KNOW, I UNDERSTAND, AND I AGREE

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WITH THE INTENT, IN TERMS OF NOT PRE-JUDGING INVESTIGATIONS AND HAVING THE APPEARANCE THAT EVERYTHING IS DONE LEGITIMATELY. I DO THINK THE CITY ACTED, THERE WERE MULTIPLE FACTORS AT PLAY HERE. AND IT FEELS WHAT WAS DONE WAS APPROPRIATE AND DOESN'T HAPPEN. MOST PERSONNEL INVESTIGATIONS DON'T INVOLVE THE POTENTIAL YOU WILL BE MOVING FORWARD ON HIRING A NEW POLICE CHIEF. ANYWAY, IT FELT LIKE THE INVESTIGATION WAS ALLOWED TO CONTINUE. THE PERSONNEL PROCESS MOVED AS IT NEEDED TO, THERE WAS A PRESUMPTION OF INNOCENCE AS TO THE PERSON WE WERE HIRING AS THE POLICE CHIEF AND THAT COULD HAVE ALWAYS BEEN REVISITED DOWN THE ROAD IF THE INVESTIGATION HAD GONE ANOTHER WAY. I GUESS THAT'S NOT A QUESTION, JUST A RAMBLE. I WILL HAVE MORE COMMENTS LATER. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. DO YOU HAVE ANY OTHER EXAMPLES OF COMMENTARY THAT WOULD FIND SUSPECT OR SHOULD APPLY TO THIS POLICY YOU ENVISION?

>> THERE WERE SOME RECENT STATEMENTS REGARDING AN OFFICER-INVOLVED SHOOTING. THE DISTRICT ATTORNEY HAS RECENTLY INDICATED THEY WILL NOT CHARGE ANY OF THE OFFICERS. BUT EVEN IN THAT ASSESSMENT THEY INDICATED THEY MADE NO ASSESSMENT OR, THEY MADE NO CONCLUSIONS ABOUT POLICY, INTERNAL POLICY VIOLATIONS. BUT YET, IN THE LOCAL REPORTING OF THAT IT INDICATED THAT THE CITY'S

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POSITION IS THERE'S NO WRONGDOING. AGAIN, THIS IS WHERE THE AREA, WE SPOKE WITH THE CITY ATTORNEY'S OFFICE, THE STATEMENTS THAT CAN BE MADE IN THAT CONTEXT WHEN THERE IS LITIGATION INVOLVED ARE DIFFERENT FROM THE ADMINISTRATIVE INVESTIGATION CONTEXT. OBVIOUSLY, THE CITY WOULD WANT TO MITIGATE ANY CONCERNS IN TERMS OF LIABILITY BUT ALSO JUST NAVIGATING WHAT THAT MEANS FOR INTERNAL INVESTIGATIONS.

>> B. BARTLETT: SORRY, CAN YOU RESTATE?

>> THAT THE CITY'S POSITION DENIES ANY WRONGDOING IN THE OFFICER-INVOLVED SHOOTINGS. AND AGAIN, THAT'S A POSITION THAT MIGHT BE APPROPRIATE FOR LITIGATION PERSPECTIVE. BUT THERE'S STILL ACTIVE ADMINISTRATIVE INVESTIGATIONS AND WE JUST DON'T KNOW WHETHER THERE WERE ANY PROCEDURAL MISSTEPS IN THOSE OFFICER-INVOLVED SHOOTINGS FROM THE POLICY PERSPECTIVE.

>> B. BARTLETT: OKAY. I'M SORRY, WAS A STATEMENT MADE DURING THE PAB INVESTIGATION OF THE EVENT? OR AFTER IT WAS COMPLETE?

>> IT'S STILL PENDING. THERE'S AN ACTIVE INVESTIGATION THAT IS BEING TOLD AND THESE STATEMENTS ARE COMING OUT WHILE THERE'S TOLLING OF THESE INVESTIGATIONS.

>> B. BARTLETT: I SEE, OKAY. I GUESS, MR. CITY MANAGER, WHAT'S YOUR READ ON THIS SCENARIO?

>> CITY MANAGER BUDDENHAGEN: WELL, AGAIN, WE AREN'T COMMENTING ON ANY SPECIFICS OF AN INVESTIGATION.

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>> B. BARTLETT: OKAY. SO WHEN YOU SAY THERE'S NO WRONGDOING, YOU AREN'T TALKING ABOUT THE INVESTIGATION THAT'S HAPPENING.

>> CITY MANAGER BUDDENHAGEN: I'M NOT TALKING ABOUT ANY SPECIFICS RELATED TO THE INVESTIGATION THAT'S ONGOING.

>> B. BARTLETT: I JUST DON'T UNDERSTAND, I'M SORRY. I JUST DON'T UNDERSTAND. I GUESS THE STATEMENT, THERE'S NO WRONGDOING.

>> CITY MANAGER BUDDENHAGEN: SO WE HAVE CONCLUDED, OUR INVESTIGATION, THERE'S NO WRONGDOING, AND THE PAB IS FREE TO CONDUCT THEIRS.

>> B. BARTLETT: I SEE. SO THE CITY MANAGER'S REFERRING TO AN INTERNAL INVESTIGATION.

>> CITY MANAGER BUDDENHAGEN: YEAH, THE D.A. FOUND THERE WAS NO WRONGDOING.

>> B. BARTLETT: I SEE, OKAY. THEY ARE COMMENTING ON THEIR OWN INVESTIGATION AS TO YOUR INVESTIGATION. IS THAT WHAT'S HAPPENING HERE?

>> I'M NOT SURE THE D.A. INDICATED THERE WAS NO WRONGDOING. I THINK THEY INDICATED THEY WEREN'T GOING TO CHARGE THE OFFICERS AND MAKE NO CONCLUSION ABOUT THE POLICY IMPLICATION. THAT'S OUR ARENA. THERE'S A PERSONNEL INVESTIGATION THAT WAS GOING TO ASSESS WHETHER THERE WAS A VIOLATION OF POLICY. SO FOR THE CITY, AS A WHOLE, TO MAKE THAT STATEMENT WHILE WE ARE TRYING TO INVESTIGATE THROUGH OUR ADMINISTRATIVE PROCESS, I THINK THAT'S

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WHERE MY CONCERN, IN TERMS OF THE CONFLICT OF IMPARTIALITY AND POTENTIAL PRE-JUDGMENTS ARE BEING MADE.

>> B. BARTLETT: THANK YOU.

>> CITY MANAGER BUDDENHAGEN: THE D.A. FOUND THERE WERE NO GROUNDS TO CHARGE THE OFFICERS.

>> MAYOR ISHII: YEAH, I WAS GOING TO SAY. IF THERE WAS SOMETHING, IF THERE HAD BEEN WRONGDOING, MY ASSUMPTION, MY EXPECTATION WOULD BE THAT OUR DISTRICT ATTORNEY WOULD FILE CHARGES. I THINK IT'S IMPORTANT TO SAY THAT. ARE THERE OTHER QUESTIONS? OKAY. AND IS THERE PUBLIC COMMENT ON THIS MATTER?

>> [OFF MIC]

>> EMILY RAGUSO FROM THE BERKELEY SCANNER. THIS IS A COMPLICATED ISSUE. I DO THINK IT REALLY HIGHLIGHTS THE CHALLENGE OF THESE DIFFERENT BODIES. I COVERED, I'M A REPORTER, I HAVE COVERED THESE CASES, A LOT OF POLICING CASES. AND I DO RECALL WITH THE TEXTING, THE CITY COMPLETED ITS INVESTIGATION AND DID BRIEFLY COMMENT ON IT. AND THEN THE PAB INVESTIGATION WAS MAYBE A YEAR OR MORE, DON'T QUOTE ME ON THAT, BUT IT TOOK MUCH LONGER TO FINISH. SO I THINK THAT CREATES A PROBLEM FOR THE PUBLIC TOO, IN TERMS OF TRANSPARENCY. I'M NOT BLAMING ANYONE. THERE WERE A LOT OF ADMINISTRATIVE ISSUES AND CHALLENGES TO GET ALL THE RECORDS AND EVERYTHING. BUT I'M JUST SAYING HAD THERE BEEN NO COMMENT FROM THE CITY FOR, YOU KNOW, A YEAR OR MORE, THEN THAT REALLY

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RAISES ITS OWN ISSUE. AND WE HAVE THIS INDEPENDENT BODY THAT WAS, YOU KNOW, BUT IT'S ALSO HAS TO WORK WITHIN THE CITY STRUCTURE. I THINK THESE ARE REALLY CHALLENGING ISSUES, WHICH IS WHY THERE IS STILL NO REGS, YOU KNOW, PERMANENT REGS. THESE ARE REALLY IMPORTANT FOR THE CITY TO FIGURE OUT. BUT I DON'T THINK LIMITING THE CITY'S ABILITY TO COMMENT IS THE ANSWER. BECAUSE THAT REALLY CREATES A WHOLE OTHER CAN OF WORMS FROM THE TRANSPARENCY PERSPECTIVE. THANK YOU.

>> MAYOR ISHII: THANK YOU. CAROL?

>> YEAH, AT THE RISK OF OFFENDING THE POLICE ACCOUNTABILITY BOARD, BECAUSE I REALLY BELIEVE THE POLICE ACCOUNTABILITY BOARD IS REALLY IMPORTANT AND IT SHOULD EXIST, I THINK THEY NEED MORE TRAINING. BECAUSE I HAVE LIST NED TO BOTH OF THESE ITEMS, BOTH 17 AND 18, MORE TRAINING TO PUT TOGETHER MORE PERSUASIVE RECOMMENDATIONS WITH MORE FACTS SO THEY CAN GIVE YOU A HARDER TIME. BECAUSE IN THE FIRST CASE, ON #17, I WAS THINKING THE SAME THING, WHY DIDN'T THEY DO MORE RESEARCH. WHY DIDN'T THEY CONTACT THE ATTORNEY GENERAL'S OFFICE, ET CETERA. IT SEEMS ALL OF THAT COULD HAVE BEEN DONE AND THEY COULD HAVE MADE IT PERHAPS A MORE PERSUASIVE ARGUMENT. IN #18, I NEVER HEARD THERE WAS A SUBSTANTIAL CONNECTION THAT THE POLICE CHIEF HAD TO THE TEXTING. SO I'M HEARING THIS TONIGHT. I AGREE WITH EMILY THAT THERE SHOULD BE, THE CITY MANAGER SHOULD BE ABLE TO COMMENT WHEN THEY

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ARE COMFORTABLE COMMENTING. AND THEY SHOULDN'T BE RESTRAINED FROM DOING THAT BECAUSE THAT CREATES ADDITIONAL TRANSPARENCY ISSUES. BUT IT SEEMS LIKE THERE ARE A LOT OF FACTS MISSING HERE AND THERE'S SPECULATION. AND THE POLICE ACCOUNTABILITY BOARD MAYBE NEEDS TO HAVE MORE TRAINING BEFORE THEY BRING RECOMMENDATIONS AT THIS LEVEL. SO THEY BRING SOMETHING MORE SUBSTANTIVE HERE FOR YOU TO CONSIDER AND DEBATE. THANK YOU.

>> MAYOR ISHII: CAROL, WITH ALL DUE RESPECT, WE DID GIVE HIM AN OPPORTUNITY TO COMMENT TO HAVE US WORK ON IT MORE BEFORE, AND HE CHOSE TO BRING IT HERE THIS EVENING. I HAVE MORE COMMENTS ON THAT BUT I WANT TO ALLOW FOR THE REST OF THE PUBLIC COMMENTS, IF THERE IS ANYONE ONLINE.

>> CITY CLERK: WE HAVE ONE SPEAKER ONLINE. DELLA LUNA.

>> CAN YOU HEAR ME?

>> YEAH.

>> I THINK IT WOULD BE NICE IF IT WAS MORE ROBUST BUT I DON'T FEEL WHAT PEOPLE ARE SAYING IN OPPOSITION, AS IF YOU ARE SOMEHOW RESTRICTING THE CITY MANAGER OR OTHER CITY STAFF FROM SPEAKING, WHEN YOU'RE NOT. THE CITY MANAGER COULD STILL MAKE STATEMENTS BUT THE STATEMENT COULD BE THERE'S A PENDING INVESTIGATION FROM THE POLICE ACCOUNTABILITY BOARD, YOU KNOW. SO THE CITY MANAGER AND OTHER STAFF CAN STILL TALK BUT THEY SHOULDN'T BE SAYING THINGS, WE FOUND NO EVIDENCE OF WRONGDOING. LIKE THE STATEMENTS

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THAT WERE BROUGHT UP WERE ACTUALLY VERY CLEARLY SWAYING, OR MAKING, TAKING A SIDE, OR CLEARING ANYONE OF WRONGDOING. SO WHEN SOMEONE LIKE THE CITY MANAGER MAKES A STATEMENT LIKE THAT IT DOES COME ACROSS TO THE PUBLIC AS IF THAT'S THE OFFICIAL CITY'S PERSPECTIVE. SO I THINK THAT'S WHAT THE PIECE THAT WE HAVEN'T SPOKEN TO. WHAT IT LOOKS LIKE WHEN THE CITY MANAGER DOES MAKE STATEMENTS LIKE THAT AND IS THE CITY MANAGER SPEAKING FOR THE CITY OF BERKELEY? OR NOT? OR IS IT JUST WHAT THE CITY MANAGER THOUGHT IN THAT MOMENT WHEN THEY SAW WHAT THE DISTRICT ATTORNEY SAID? BUT MY POINT IS THAT I THINK IT WOULDN'T BE RESTRICTING THE STAFF. THEY COULD STILL SPEAK. BUT THEY JUST HAVE TO BE MORE CAREFUL WITH WHAT THEY SAY. BECAUSE THEY UNDERSTAND THE IMPACT THAT IT HAS WHEN THE PUBLIC READS THAT. IT WOULD ALSO BE ACKNOWLEDGING THERE'S DIFFERENT PARTS OF THE CITY, WHICH WE TALK ABOUT ALL THE TIME. BUT THIS IS ACKNOWLEDGING WHEN YOU MAKE A BROAD STATEMENT LIKE THAT, THEN ARE ACTUALLY TAKING AWAY THE POWER FROM ANOTHER PART OF THE CITY THAT IS ALREADY FUNCTIONING, OR INDEPENDENT BODY. YOU KNOW. SO THAT'S IT.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: THAT WAS OUR ONLY RAISED HAND ON ZOOM.

>> MAYOR ISHII: COMMENTS FROM COUNCIL STARTING WITH COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU. I'M GOING TO TRY TO SPEAK FRANKLY AND

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BRIEFLY, WARMLY OR KINDLY, AT LEAST. JUST HAVING, YOU KNOW, GONE THROUGH THESE KINDS OF ITEMS AND CONVERSATIONS A FEW TIMES NOW, I FEEL LIKE THERE'S A PATTERN HERE, RIGHT? SOME PEOPLE DON'T LIKE THE FINDINGS OF THE INVESTIGATION. SOME PEOPLE DON'T LIKE THE APPOINTMENT OF THE POLICE CHIEF AND WE HAVE TO KEEP RELITIGATING EACH OVER AND OVER AGAIN AND I DON'T THINK THAT'S THE BEST WAY TO MODEL THIS KIND OF CONFIGURATION THAT WE HAVE HERE. YES; WE HAVE INDEPENDENT PARTS OF THE CITY. YES, WE ARE ALL CHARTER OFFICERS. AND THAT COMES WITH THE UNDERSTANDING AND THE PROFESSIONAL GRACE TO RESPECT EACH OTHER'S JURISDICTIONS AND FIND A WAY WITHIN THAT TO WORK TOGETHER TO OUR COLLECTIVE GOAL. YOU KNOW. IT DOESN'T MAKE SENSE THAT DAILY COWELL WOULD BE UNABLE TO REPORT SOMETHING ABOUT A CLOSED INVESTIGATION IN THE YEAR 2025. OR THAT THE CITY MANAGER WOULDN'T BE ABLE TO GIVE AN OPINION ABOUT A HIRE TO THE CITY COUNCIL THROUGH INTERNAL COMMUNICATIONS. WHETHER OR NOT THEY GIVE P.R. AID. AND THERE'S A LOT THAT I EXPECT FROM THIS BODY. I MEAN, FROM PAB AND THE OFFICE. AND THERE IS SO MUCH POTENTIAL THAT WE HAVE HERE IN THIS TOWN. AND I REALLY LOOK FORWARD TO THE DAY WHERE WE CAN REALLY PUT THAT TO USE AND REALLY GET SOME SUBSTANTIVE MATERIAL THINGS ACCOMPLISHED, THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANKS, MADAM MAYOR. AND THANKS AGAIN DIRECTOR

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FOR BEING HERE. I WANT TO PICK UP WHERE COUNCILMEMBER TAPLIN LEFT OFF. SORRY, VICE MAYOR TAPLIN. I'M A FORMER MEMBER OF THE PAB, AS I MENTIONED BEFORE. I BELIEVE WHOLEHEARTEDLY IN THE VALUE OF POLICE OVERSIGHT. WE HAVE A GREAT POLICE DEPARTMENT BECAUSE WE HAVE GREAT LEADERSHIP, GREAT OFFICERS AND GREAT OVERSIGHT FUNCTION TO MAKE SURE THE WHOLE THING WORKS AND I BELIEVE THAT. AND MOST CITIES ENVY, I THINK, THE STRUCTURE WE HAVE. MAYBE NOT ALL OF THE WAY IT WORKS NECESSARILY EVERY DAY BUT THE FACT WE HAVE A GREAT DEPARTMENT. WE HAVE PUBLIC CONFIDENCE IN THE DEPARTMENT. AND WE HAVE A PROCESS FOR ADDRESSING CONCERNS AND PROBLEMS, WHETHER ON THE PERSONNEL SIDE OR ON THE POLICY SIDE. SO, ESPECIALLY WHEN THAT OVERSIGHT FUNCTION IS FOCUSED AND TARGETED ON THE KEY GOALS, WHICH IS ASSURING ACCOUNTABILITY AND PERSONNEL COMPLAINTS AS WELL AS COMMENDING OFFICERS THAT DO GOOD WORK, THAT'S PART OF THE PAB'S ROLE. PROVIDING MEANINGFUL FEEDBACK ON POLICY CHANGES WHICH CONTINUES TO HAPPEN. WEIGHING IN ON THE PROPOSED BPD BUDGET WHICH BOARD MEMBER WILSON AND I DID A COUPLE YEARS AGO. THOSE ARE ALL PART OF THE CHARTER AND THOSE ARE ALL USEFUL FUNCTIONS. AS VICE MAYOR TAPLIN MENTIONED THERE'S SO MUCH GOOD WORK STILL TO BE DONE IN THE COMING MONTHS JUST RIGHT IMMEDIATELY AHEAD OF US. THERE'S STANDING UP THE NEW EARLY INTERVENTION SYSTEM WHICH I THINK IS SUPPOSED TO GO ONLINE IN Q4 AND THE PAB AND

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DEPARTMENT ARE WORKING HAND IN HAND ON THAT. THAT'S AN IMPORTANT MECHANISM TO ENSURE TRUST AND CREDIBILITY, IDENTIFYING PROBLEM OFFICERS BEFORE THEY BECOME PROBLEMS. WHICH AGAIN, WE CAN REALLY LEAD ON. WE HAVE HAD A DISCUSSION UP HERE, ROBUST DISCUSSION ABOUT CONCERNS AND QUESTIONS ABOUT FLOCK CAMERAS. I, AGAIN, BELIEVE IN THE VALUE OF SURVEILLANCE, ARE THERE BETTER VENDORS OR TECHNOLOGY OPTIONS? THAT'S ANOTHER AREA THAT IS GREAT POTENTIAL TO BE INVESTIGATED. I THINK WE WOULD ALL BE VERY INTERESTED IF THERE'S ANOTHER VENDOR TO LOOK AT ANOTHER VENDOR. THAT'S AN AREA THAT IS RIPE FOR FURTHER WORK. TIMELY WORK. COUNCILMEMBER, VICE MAYOR TAPLIN JUST INTRODUCED A NEW POLICY ON DRONE USAGE WHICH WILL BE COMING TO THE PUBLIC SAFETY COMMITTEE IN THE COMING WEEKS. AND I EXPECT THAT WILL BE A SEVERAL-MONTH PROCESS OF REVIEWING AND CONSIDERING HOW DO WE USE THEM? WHAT ARE THE LIMITS THAT ARE APPROPRIATE THERE? THERE'S SO MUCH WORK WE CAN DO TOGETHER ON THAT. AND FINALLY, WE JUST DRAFTED AN ITEM THAT'S COMING TO COUNCIL IN THE NEXT COUPLE OF WEEKS. IT'S BEEN A FOUR-YEAR PROCESS TO JUST TRY AND ENACT THE PERMANENT REGULATIONS WITH THE PAB. THIS IS A MULTI -- THIS ISN'T BLAMING OR POINTING A FINGER AT ANYBODY. BETWEEN THE CITY, THE DEPARTMENT, THE POLICE ASSOCIATION AND PAB, IT'S A COMPLEX NEGOTIATION BUT IT'S BEEN FOUR YEARS WE HAVE BEEN OPERATING WITH INTERIM REGULATIONS AND NOT PERMANENT REGULATIONS. WE NEED TO

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BRING THAT TO A CONCLUSION. SO THERE ARE SO MANY THINGS AS VICE MAYOR TAPLIN MENTIONED WHERE I THINK THE PAB'S ROLE IS CRITICAL AND VITAL AND PROVIDE AN IMPORTANT VOICE IN THESE CONVERSATIONS. AND I REALLY HOPE THAT'S WHERE WE CAN SORT OF GET TO BECAUSE I THINK WE WELCOME THAT PARTICIPATION AND THAT HEALTHY DEBATE AND DISCUSSION. I KNOW WE WILL MOVE FORWARD AND REACH A DECISION HOW WE WANT TO MOVE FORWARD WITH ITEM 18. I HOPE WE CAN MOVE PAST THESE AND GET BACK TO THE SUBSTANTIVE WORK WHERE THE PAB CAN ADD A TON OF VALUE AND I HOPE THAT THEY WILL. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. YOU KNOW, I ALSO SERVED ON THE FORERUNNER TO THE PAB, THE POLICE REVIEW COMMISSION. AND OF COURSE IT WAS LESS ROBUST, LESS INDEPENDENT, WE DIDN'T HAVE AN EXECUTIVE LIKE YOURSELF. HOWEVER, WE DID DO WORK, WE DID GREAT WORK. I WAS THERE AFTER THE FIRST RIOTS, OR DANGEROUS PROTESTS AT THE SOUTH SIDE AND SHATTUCK AFTER A MAN WAS MURDERED IN ST. LOUIS. I FORGET HIS NAME. SO WE REVIEWED THOUSANDS OF HOURS OF TAPES OF FOOTAGE AND WE CAME UP WITH NEW RULES AROUND CROWD CONTROL AND SOME STILL STAND TODAY. IT WAS AN INCREDIBLE PROCESS. I LEARNED A LOT. BUT LOOKING BACK ON THAT ERA, MY COLLEAGUES AND I ON THAT BOARD, WE WERE SO DILIGENTLY FOCUSED ON COMBING THROUGH THAT MATERIAL AND DOING OUR BEST TO CREATE SOME NEW RULES OR SOME PROCESS TO MAKE IT EASIER TO BE SAFE IN

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BERKELEY. AND SO, I THINK THAT YOU IN PARTICULAR ARE FACED WITH A BIT OF AN EXISTENTIAL CRISIS. ARE WE SEPARATE OR NOT, WHAT'S THE DEAL? WHO SPEAKS TO WHAT, WHEN? I THINK THAT WILL BECOME MORE CLEAR TO YOU WHEN YOU FINISH THE TASK ON YOUR PLATE. BECAUSE YOU KNOW, IT APPEARS AS IF, WE ARE IN DANGER OF SORT OF SPLITTING OUR MIND AND FOCUSING ON TOO MANY THINGS INSTEAD OF THE TASK AT HAND WHICH IS REALLY ACCOMPLISH THE TASK BEFORE YOU. I WANT TO ECHO MY COLLEAGUE, COUNCILMEMBER BLACKABY'S COMMENTS, YOU ARE SUPER IMPORTANT. IT'S BEEN 50 YEARS OF POLICE OVERSIGHT IN THE CITY OF BERKELEY. AND AS A RESULT OF OUR SUSTAINED ATTENTION AND YOUR SUSTAINED ATTENTION WE NOW HAVE THE BEST DATA AROUND. OUR PULL OVER DATA, USE OF FORCE DATA. THIS POLICE FORCE HAS RAPIDLY, AND YOU KNOW, IN YEARS, HAS DRAMATICALLY CHANGED AND EVOLVED ITS PRACTICES TO BE MUCH MORE FAIR, MUCH MORE RESOLUTELY ALIGNED WITH THE CONSTITUTION. AND SO YOUR WORK IS IMPORTANT TO KEEP THAT GOING AND KEEP US GROWING. SO I ADMONISH YOU TO PLEASE, FOR THESE ITEMS, LET'S TAKE IT TO THE COMMISSION. LET'S UNPACK IT. LIKE FOR INSTANCE, DETERMINE IF THE CITY MANAGER DOES HAVE A POLICY AROUND COMMENTING ON AFFAIRS OF EMPLOYEES AND WHAT NOT, THE CITY ATTORNEY MENTIONED AS WELL. MAYBE YOU COULD DISCUSS THAT AT THE COMMITTEE AND SEE WHERE THAT MIGHT TIE INTO IT. IF IT DOESN'T WORK, YOU CAN MAKE YOUR OWN COMMENT ONCE YOU HAVE FINISHED YOUR INVESTIGATION. BUT I THINK

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RIGHT NOW YOU ARE BETTER OFF FOCUSING ON GETTING THROUGH STEP ONE. THANK YOU.

>> MAYOR ISHII: THANK YOU. ARE THERE OTHER COMMENTS FROM MY COUNCILMEMBERS? OKAY. I WANT TO MAKE A MOTION. BUT LET ME JUST, I HAVE SOME COMMENTS FIRST I WANT TO MAKE. I WANT TO FIRST SAY I'M REALLY DISAPPOINTED THIS CAME THE WAY THAT IT DID. I FIND IT INCREDIBLY FRUSTRATING GIVEN THAT I KNOW MY COLLEAGUES AND I WERE REALLY TRYING TO DO THAT WORK, AS CAROL SAID OF COACHING YOU HOW TO BRING SOMETHING THAT COULD BE SUCCESSFUL FORWARD. AND I HAVE FOUND TIME AND TIME AGAIN THAT EVEN IF WE OFFER SUPPORT AND TRY TO HELP TO CHANGE THE WAY THAT THINGS ARE BEING BROUGHT FORWARD SO THEY CAN BE SUCCESSFUL, IT JUST FEELS LIKE YOU ARE IN CONSTANT OPPOSITION WITH WHAT WE ARE RECOMMENDING TO YOU. AND IT'S NOT BECAUSE WE DON'T WANT TO BE SUPPORTIVE OF THE WORK THAT YOU DO, BECAUSE I DO FEEL THAT'S HOW IT IS BEING TAKEN. I WANT TO MAKE SURE THAT IT'S CLEAR, I HAVE BEEN VERY SUPPORTIVE OF THE WORK OF PAB. I'M VERY SUPPORTIVE OF YOUR OFFICE. I WANT TO SEE YOU BE SUCCESSFUL. AND BRINGING THINGS WITHOUT THE COLLABORATION AND COMMUNICATION, WITH THE RELEVANT CITY STAFF, IS JUST NOT THE WAY TO MOVE FORWARD. SO I REALLY WANT TO EXPRESS MY DISAPPOINTMENT IN THE WAY THIS CAME FORWARD. IT'S ALSO REALLY INTERESTING TO ME THAT NO ONE FROM PAB CAME TO SPEAK IN SUPPORT OF THIS TONIGHT. I THINK THAT'S WORTH MENTIONING. I WANT TO SAY

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THAT I WANTED TO MOVE THIS FORWARD BECAUSE I DO THINK IT'S IMPORTANT THAT COMMUNICATION IS CLEAR THAT WE ARE CLEAR ABOUT WHAT IS ALLOWED AND NOT ALLOWED TO SAY. AND SO WITH MY ITEM, I'M MOVING TO REFER ITEM #18 TO THE CITY ATTORNEY'S OFFICE WITH DIRECTION TO PREPARE A MEMORANDUM TO STAFF AND COUNCIL ADDRESSING THE APPLICABLE LEGAL DOCTRINES RELATED TO DUE PROCESS PENDING INVESTIGATIONS AND OTHER RELATED MATTERS.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: LET'S TAKE THE ROLL.

>> CITY CLERK: ON THE RECOMMENDATION -- SORRY, ON THE MOTION.

>> R. KESARWANI: CAN YOU JUST REPEAT IT THERE WERE A COUPLE COMPONENTS.

>> MAYOR ISHII: SURE. BASICALLY THE IDEA IS THERE ARE ALREADY THINGS THAT EXIST. THE MEMORANDUM WOULD BE, IT'S A DIRECTION TO THE CITY ATTORNEY'S OFFICE TO PREPARE A MEMORANDUM TO STAFF AND COUNCIL, ADDRESSING THE APPLICABLE LEGAL DOCTRINES RELATED TO DUE PROCESS, PENDING INVESTIGATIONS AND OTHER RELATED MATTERS.

>> R. KESARWANI: OKAY, SO IT'S NOT ASKING FOR ANY NEW POLICY BUT JUST RESTATING EXISTING POLICY.

>> MAYOR ISHII: CORRECT, A MEMO WITH EXISTING ISSUE THAT'S CLARIFY THIS ISSUE.

>> CITY CLERK: KESARWANI?

>> YES.

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>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

>> MAYOR ISHII?

>> MAYOR ISHII: YES. OKAY, THANK YOU. THANK YOU FOR YOUR PRESENTATION. YOU HAVE A RESPONSE?

>> JUST, I APPRECIATE THE FEEDBACK. I'VE BEEN HERE THREE YEARS. I'VE BEEN CONSISTENTLY ASKING FOR A PERFORMANCE EVALUATIONS, TO BE PUBLICLY GIVEN A PERFORMANCE EVALUATION LIKE THIS. YOU EXPRESSED YOUR DISAPPOINTMENT FOR ME, I DON'T THINK IT'S APPROPRIATE AND I THINK WE SHOULD HAVE A CLOSED SESSION CONVERSATION IF THERE'S OTHER CONCERNS ABOUT MY PERFORMANCE. BUT

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I DO APPRECIATE THIS CONVERSATION THAT WE ARE HAVING HERE AND WHAT THE EXPECTATION OF COUNCIL IS. BUT I JUST WANT TO NOTE I THINK IT'S IMPORTANT FOR OUR OFFICE TO BE ABLE TO PERFORM TO THE EXPECTATIONS OF COUNCIL IS TO HAVE CLEAR DIRECTION, METRICS AND CONVERSATION ABOUT WHERE WE ARE ON PERFORMANCE. SO I APPRECIATE THE FEEDBACK.

>> MAYOR ISHII: AND I HAVE LET YOU KNOW VIA EMAIL THAT WE ARE WORKING ON GETTING CONSULTANTS TO DO EVALUATIONS OF ALL OF OUR CHARTER OFFICERS. SO THAT WILL BE COMING. ALL RIGHT. IS THERE ANY PUBLIC COMMENT FOR ITEMS NOT ON THE AGENDA?

>> CITY CLERK: THERE ARE NO HANDS RAISED ON ZOOM.

>> MAYOR ISHII: OKAY, IS THERE A MOTION TO ADJOURN? OH, SORRY, DID YOU HAVE A PUBLIC COMMENT? NO? ON ANYTHING NOT ON THE AGENDA.

>> GREETINGS MADAM MAYOR AND COUNCILMEMBERS AND GREETINGS TO THE PUBLIC. I JUST WANTED TO KNOW IF THERE'S ANY PROGRAMS OUT THERE WHERE A SINGLE HOMELESS INDIVIDUAL CAN SET UP HIS TENT LIKE IN A BACKYARD OR SOMETHING LIKE THAT, IF THEY ARE QUIET AND CLEAN?

>> MAYOR ISHII: I'M NOT AWARE OF ANY OF THOSE PROGRAMS THAT CURRENTLY EXIST. BUT IT'S A GOOD IDEA IF ANYONE HAS GOT A BACKYARD THAT THEY ARE OPEN TO THAT. THANK YOU. OKAY, IS THERE A MOTION TO ADJOURN?

>> SO MOVED.

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>> SECOND.

>> MAYOR ISHII: ANY OPPOSITION? OKAY, MEETING IS ADJOURNED.

THANK YOU.

[ADJOURNED 8:36 P.M.]

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